



30006742

RETURN BIDS TO:

RETOURNER LES SOUMISSIONS À :

Bid Receiving/Réception des soumissions :
Procurement Hub | Centre d'approvisionnement
Fisheries and Oceans Canada | Pêches et
Océans Canada

200 Kent Street | 200 rue Kent

Ottawa, ON, K1A 0E6

Email / Courriel : [DFO.tenders-
soumissions.MPO@dfo-mpo.gc.ca](mailto:DFO.tenders-soumissions.MPO@dfo-mpo.gc.ca)

**REQUEST FOR STANDING OFFER
DEMANDE D'OFFRES À COMMANDES
(DOC)**

Proposal to: Fisheries and Oceans Canada

We hereby offer to sell to His Majesty the King in
right of Canada, in accordance with the terms
and conditions set out herein, referred to herein
or attached hereto, the goods and services listed
herein and on any attached sheets at the price(s)
set out therefor.

Proposition à : Pêches et Océans Canada
Nous offrons par la présente de vendre à
Sa Majesté le Roi du chef du Canada, aux
conditions énoncées ou incluses par
référence dans la présente et aux
appendices ci-jointes, les biens et les
services énumérés ici sur toute feuille ci-
annexée, au(x) prix indiqué(s).

Title / Titre Regional Standing Offer for Environmental Services – Newfoundland and Labrador Region.		Date May 7, 2026
Solicitation No. / N° de l'invitation 30006742		
Client Reference No. / No. de référence du client(e) 30006742		
Solicitation Closes / L'invitation prend fin At / à : 14 :00 EDT (Eastern Daylight Time) / HAE (Heure Avancée de l'Est) On / le : June 2, 2026		
F.O.B. / F.A.B. Destination	Taxes See herein — Voir ci-inclus	F.O.B. / F.A.B. Destination
Destination of Goods and Services / Destinations des biens et services See herein — Voir ci-inclus		
Instructions See herein — Voir ci-inclus		
Address Inquiries to : / Adresser toute demande de renseignements à : Louise Martel, Contracting Specialist Email / Courriel: DFO.tenders- soumissions.MPO@dfo-mpo.gc.ca		
Delivery Required / Livraison exigée See herein — Voir en ceci		Delivery Offered / Livraison proposée
Vendor Name, Address and Representative / Nom du vendeur, adresse et représentant du fournisseur/de l'entrepreneur		
Telephone No. / No. de téléphone		Facsimile No. / No. de télécopieur
Name and title of person authorized to sign on behalf of Vendor (type or print) / Nom et titre de la personne autorisée à signer au nom du fournisseur (taper ou écrire en caractères d'imprimerie)		
Signature		Date



**REQUEST FOR STANDING OFFER (RFSO)
30006742**

**Regional Standing Offer for Environmental
Services Newfoundland and Labrador
Region**

FISHERIES AND OCEANS CANADA



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1. Solicitation of Offers.

1.1. Introduction. Canada requests offers from Offerors to meet its requirements. For the convenience of Offerors, a brief description is set out below with detailed requirements in subsequent sections of this solicitation of offers. If interested and able to meet these requirements, Canada appreciates and welcomes an offer.

1.2. Offers. Canada is seeking offers from Offerors to provide Regional Standing Offer for Environmental Services – Newfoundland and Labrador Region to Fisheries and Oceans.

1.3. Standing Offer Process.

- a. Process Overview.** One method that Public Works and Government Services Canada (PWGSC) uses to satisfy Canada's supply requirements is to arrange with potential suppliers to submit a standing offer to provide goods, services or both during a specified period. PWGSC then authorizes specific departments and agencies to make call-ups against the standing offer, during the effective period of the standing offer and in accordance with the predetermined conditions, detailing the exact quantities of goods or level of services they wish to order.
- b. Start of Process.** The process normally starts with a Request for Standing Offers (RFSO), which suppliers may obtain through the Government Electronic Tendering Service (GETS). An RFSO is an invitation to potential suppliers to provide PWGSC with a standing offer. The quantity of goods, level of services, and estimated expenditure specified in the RFSO are only Canada's approximation of its requirements. An RFSO does not commit PWGSC to authorize the use of a standing offer or to procure or contract for any goods or services. A standing offer is not a contract. PWGSC's issuance of a Standing Offer and Call-up Authority to successful offerors and to departments and agencies authorized to make call-ups does not constitute Canada's agreement to order any such goods or services. Departments and agencies may make one or several call-ups against a standing offer.

1.4. Term. The period of the Standing Offer is from date of award to 31 March, 2031 inclusive.

2. Offer Requirements.

2.1. Security Requirements. There are no security requirements associated with this solicitation of offers.

2.2. Solicitation of Offer Submission Eligibility. This solicitation of offers is subject to the Policy on Reciprocal Procurement. This means that only Canadian Suppliers and Suppliers of an Applicable Trading Partner, as defined in the Annex Solicitation of Offers Definitions, are eligible for this solicitation of offers. Offers submitted by Suppliers of a Non-Trading Partner will be rejected.

2.3. Basis for Canada's Ownership of Intellectual Property. In accordance with Canada's [Policy on Title to Intellectual Property Arising Under Crown Procurement Contracts](#), Canada has determined that any intellectual property rights arising from the performance of the Work under the Contract will belong to Canada, for one or more of the following reasons:

- a.** the Intellectual Property in Foreground Information consists of material subject to copyright, with the exception of computer software and all related documentation



3. Offeror Requirements.

3.1. Offeror Responsibilities. Each Offeror should:

- a. obtain any clarification it considers necessary of the solicitation of offers requirements before submitting an offer;
- b. prepare its offer in accordance with the solicitation of offers instructions;
- c. submit a complete offer by the closing date and time as per the instructions noted in section entitled "Offer Submission";
- d. provide a comprehensible and sufficiently detailed offer, including all requested pricing details that will enable Canada to complete its evaluation based on the solicitation of offers criteria, and
- e. comply with all other requirements of this solicitation of offers.

3.2. Legal Capacity. The offeror must have the legal capacity to contract. If the Offeror is a sole proprietorship, a partnership (if Common Law) or a general partnership (if Civil Law), or a corporate body, the Offeror must provide, if requested by the CONTRACTING AUTHORITY, a statement and any requested supporting documentation indicating the laws under which it is registered or incorporated together with the registered or corporate name and place of business. This also applies to offerors submitting an offer as a joint venture.

3.3. Compliance with Code of Conduct. The Offeror must comply with Canada's [Code of Conduct for Procurement](#).

3.4. Ineligibility and Suspension Policy.

- a. **Mandatory Compliance.** The Ineligibility and Suspension Policy (the "Policy") in effect on the date the solicitation of offers is issued, and all related Directives in effect on that date, are incorporated by reference into, and form a binding part of the solicitation of offers. The Offeror must comply with the Policy and Directives, which can be found at the [Office of Supplier Integrity and Compliance website](#).
- b. **Policy Summary.** The Policy sets out the circumstances under which Canada may determine that the Supplier is ineligible to enter, or is suspended from entering into a Contract with Canada. The list of ineligible and suspended Suppliers is maintained on the [Office of Supplier Integrity and Compliance website](#).
- c. **Offeror Responsibilities.** The Offeror must provide the following:
 - i. a [List of Names for integrity verification](#) that includes all information required by the Policy (section 13 – Disclosure); and
 - ii. if the Offeror is unable to certify all of the statements in the sub-clause below entitled "Offeror Certifications", a completed [Integrity Declaration Form](#) providing all requested information and details of any material event that may affect the status of itself, its affiliates or its proposed first-tier subcontractors under the Policy.
- d. **Offeror Certifications.** Subject to the sub-clause below entitled "Integrity Declaration Form", by submitting an offer in response to this solicitation of offers, the Offeror certifies that:
 - i. it has read and understands the [Ineligibility and Suspension Policy](#);
 - ii. it understands that certain circumstances, as described in the Policy, will or may result in a determination of ineligibility or suspension under the Policy;



- iii. it is aware that Canada may request additional information, certifications, and validations from the Offeror or a third party for the purpose of making a determination of ineligibility or suspension;
 - iv. none of the circumstances described in [Appendix 2 of the Policy](#) that will or may result in a determination of ineligibility or suspension, apply to itself, its affiliates or its proposed first tier subcontractors; and
 - v. it is not aware of a determination of ineligibility or suspension issued by Canada that applies to it.
- e. **Integrity Declaration Form.** Where an Offeror is unable to provide all of the certifications required by the sub-clause above entitled "Offeror Certifications", at the time of its offer it must submit a completed [Integrity Declaration Form](#).
- f. **Compliance with Certifications.** Canada will declare non-compliant any offer in respect of which the information requested is incomplete or inaccurate, or in respect of which the information contained in a certification or declaration is found by Canada to be false or misleading in any respect. If Canada establishes after award of the Contract that the Offeror provided a false or misleading certification or declaration, Canada may terminate the Contract for default. Pursuant to the Policy, Canada may also determine the Offeror to be ineligible for award of a Contract for providing a false or misleading certification or declaration.

3.5. Conflict of Interest.

- a. **Right to Reject.** Canada may reject an offer if the Offeror, any of its subcontractors, or any of their respective employees or former employees
- i. was involved in any manner in the preparation of the solicitation of offers or in any situation of conflict of interest or appearance of a conflict of interest, or
 - ii. had access to information related to the solicitation of offers that was not available to other offerors and that would, in Canada's opinion, give or appear to give the Offeror an unfair advantage.
- b. **Experience Not an Unfair Advantage.** Canada will not consider any experience any Offeror has acquired by providing the goods and/or services described in the solicitation of offers (or similar goods and/or services), in itself, as conferring an unfair advantage or creating a conflict of interest.
- c. **Notification of Rejection.** If Canada intends to reject an offer under this section, the CONTRACTING AUTHORITY will inform the Offeror and provide the Offeror an opportunity to make representations.

3.6. Insurance. The successful Offeror will be responsible to meet insurance requirements in accordance with the resulting contract section entitled "Insurance".

3.7. Former Public Servants. Offerors who are Former Public Servants in receipt of a Pension or Lump Sum Payment must provide the information required in the "Annex-Offerors Declaration Form" before the issuance of a Standing Offer.

4. Offer Submission.

4.1. Offer Receipt. Subject to provisions for delayed offers, Canada will consider only offers submitted to Fisheries and Oceans Bid Receiving Unit by the date, time and place indicated on page 1 and the "Offer Submission" section of the solicitation.



4.2. Offer Sections. Offerors are requested to submit their offers separated into the following sections:

Section I: Technical Offer;

Section II: Financial Offer;

Section III: Offer Submission Form and Offeror Declaration Form.

4.3. Delayed Offers.

- a. **Late Offers.** Canada will not consider offers delivered after the offer submission closing date and time, unless they qualify as a delayed offer as described below. Canada will return late offers submitted physically, and will delete late offers submitted electronically (while retaining the transaction history).
- b. **Cause of Delay.** Canada may consider an offer delivered after the solicitation of offers closing date but before Canada awards the **STANDING OFFER** if the Offeror can prove the delay is due solely to a delay in the delivery caused by the Canada Post Corporation (or the national equivalent of a foreign country). Canada will not consider delayed offers due to private couriers (Purolator Inc., FedEx Inc., etc.) misrouting, traffic volume, weather disturbances, labour disputes or any other causes for the late delivery of offers.
- c. **Evidence of Delay.** The only evidence relating to a delay in the CPC system that Canada will accept are (i) a CPC cancellation date stamp, (ii) a CPC Priority Courier bill of lading, (iii) a CPC Xpresspost label that clearly indicates that the Offeror mailed the offer before the solicitation of offers closing date, or (iv) a Canada Post Corporation Connect date and time record indicated in the Connect conversation history that clearly indicates that the Offeror sent the offer before the solicitation of offers closing date and time. Postage meter imprints are not acceptable as proof of timely mailing. For the national equivalent to the CPC in a foreign country, Canada will accept the local equivalent to these CPC documents.

4.4. Customs Clearance. It is the responsibility of the Offeror to allow sufficient time to obtain Customs clearance, where required, before the offer closing date and time. Delays related to the obtaining of Customs clearance cannot be construed as "undue delay in the mail" and will not be accepted as a delayed offer.

4.5. Offer Submitted by Email.

- a. **Submission by Email.** Offerors may send to the address specified in the clause entitled "Offer Receipt".

4.6. Offer Submission Method Restrictions. Canada will not accept offers submitted in any other manner.

4.7. Discrepancies.

- a. **Submission via CPC Connect Service.** If the Offeror provides simultaneous copies of its offer using multiple acceptable delivery methods and there is a discrepancy between the wording of any of these copies and the copy provided through CPC Connect service, the wording of the copy provided through CPC Connect service will have priority.
- b. **Submission via Other Methods.** In all other cases of discrepancy, the wording of the hard copy of the offer will have priority.

4.8. Offer Submission Requirements.

- a. **Authority.** Each Offeror (and each member of a Joint Venture submitting an Offer) must (i) have legal capacity to contract and (ii) sign the offer by an authorized representative of the



Offeror. If a Joint Venture Offeror submits an Offer, the Joint Venture will be required to identify its representative chosen to act on behalf of the Joint Venture (if the Offeror has not done so in the Offer, Canada will provide it a deadline to do so).

- b. **Procurement Business Number.** Each Offeror (and each member of a Joint Venture submitting an Offer) must have a Procurement Business Number (PBN) before issuance of a Standing Offer. Suppliers may register for a PBN online at [Supplier Registration Information](#).
- c. **Offer Identification.** Each Offeror must ensure that its name, its return address, the solicitation of offers number, and the closing date and time of the solicitation of offers are clearly visible on any envelope or parcels containing samples or any paper bid as applicable.
- d. **Validity of Offers.** Offers will remain open for acceptance for a period of not less than 120 calendar days from the closing date of the solicitation of offers, unless specified otherwise in the solicitation of offers. Canada reserves the right to seek an extension of the Offer validity period from all compliant Offerors in writing, at least three calendar days before the end of the Offer validity period. If all compliant Offerors agree to extend their Offers, Canada will continue with the evaluation of the Offers. If not all compliant Offerors extend their Offers, Canada, at its sole discretion, will either continue with the evaluation of the Offers of those who have accepted the extension or cancel the solicitation of offers.
- e. **Offer Language.** Offerors may submit their documents and supporting information in either English or French.
- f. **Offer Become Property of Canada.** Offers received on or before the closing date and time of the solicitation of offers will become the property of Canada and Canada will not return them to Offerors. Canada will treat all Offers as confidential, subject to the provisions of the Access to Information Act and the Privacy Act.
- g. **No Assignment of Offers.** An Offer cannot be assigned or transferred in whole or in part.
- h. **Joint Ventures.** If a standing offer is issued to a joint venture, all members of the joint venture will be jointly and severally or solidarily liable for the performance of any contract resulting from a call-up against the standing offer.

4.9. Technical Difficulties of Offer Transmission. Despite anything to the contrary in this solicitation of offers, where an Offeror has commenced transmission of its offer through an electronic submission method (such as facsimile or Canada Post Corporation's (CPC) Connect service, or other online service) in advance of the solicitation of offers closing date and time, but due to technical difficulties, Canada was unable to receive or decode the entirety of the Offer by the deadline, Canada may nonetheless accept the entirety of the Offer received after the solicitation of offers closing date and time, provided that the Offeror can demonstrate the following:

- a. The offeror contacted Canada in advance of the solicitation of offers closing date and time to attempt to resolve its technical difficulties; OR
- b. The electronic properties of the Offer documentation clearly indicate that all components of the Offer were prepared in advance of the solicitation of offers closing date and time.

4.10. Completeness of the Offer. After the closing date and time of this solicitation of offers, Canada will examine the Offer to determine completeness. The review for completeness will be limited to identifying whether any information submitted as part of the offer can be accessed, opened, and/or decoded. This review does not constitute an evaluation of the content, will not assess whether the Offer meets any standard or is compliant to all solicitation of offers requirements, but will be solely limited to assessing completeness. Canada will provide the Offeror with the opportunity to submit information



found to be missing or incomplete in this review within two business days of notice. The offer will be reviewed and deemed to be complete when the following elements have been submitted by the offeror:

- a. certifications and securities required at offer closing are included;
- b. offers are properly signed, that the offeror is properly identified;
- c. acceptance of the terms and conditions of the solicitation of offers and resulting contract;
- d. that all documents (including certifications, declarations and proofs) created prior to offer closing but due to technical difficulties Canada was unable to receive them, have been properly submitted and received by Canada.

4.11. Provision of Documentation. Canada will make available Notices of Proposed Procurement, solicitation of offers, and related documents for download through the Government Electronic Tendering Service. Canada is not responsible and will not assume any liabilities whatsoever for the information found on websites of third Parties. Canada will not notify Offerors if it amends a Notice of Proposed Procurement, a solicitation of offers, or any related documentation. It will post all amendments (including significant enquiries received and their replies) using Government Electronic Tendering Service. Offerors are responsible for regularly consulting Government Electronic Tendering Service for the most up-to-date information. Canada will not be liable for any oversight on the Offeror's part nor for notification services offered by a third Party.

4.12. Offer Costs. The Offeror is solely responsible for all costs associated with preparing and submitting its offer, as well as any costs it incurs in the evaluation of its offer.

4.13. Applicable Laws. The Standing Offer and any contract resulting from the Standing Offer must be interpreted and governed, and the relations between the Parties determined, by the laws in force in a Canadian province or territory. Offerors may insert the Canadian province or territory of their choice in the Offer Submission Form. If the Offeror does not include this information in the Offer Submission Form, the applicable laws will be those in force in **Newfoundland and Labrador**.

4.14. Entire Requirement. The solicitation of offers documents contain all the requirements relating to the solicitation of offers; no other information or documentation is relevant. Offerors should not assume that practices used under previous solicitations of offers or contracts will continue or that the Offeror's existing capabilities meet the requirements of the solicitation of offers simply because they have met previous requirements.

5. Communications.

5.1. Communications During Solicitation of Offers Period. To ensure the integrity of the competitive process, the Offeror must direct all questions and other communications regarding the solicitation of offers only to the STANDING OFFER AUTHORITY identified in the solicitation of offers. Failure to comply may result in Canada rejecting the offer.

- a. **Period for Questions.** Offerors should submit all questions in writing no later than ten (10) business days before the offer closing date. Canada may not respond to questions submitted after this.
- b. **Detail of Questions.** Offerors must accurately reference the numbered item of the solicitation of offers to which the question relates and explain each question in sufficient detail to enable Canada to provide an accurate answer.
- c. **Proprietary Questions.** For any technical questions containing proprietary information, Offerors must clearly mark those questions as "proprietary". Canada will treat such questions



as proprietary except where Canada determines that the question is not of a proprietary nature. Canada may edit the question(s) or may request that the Offeror revise the question(s) to eliminate the proprietary nature of the question(s) and Canada can provide the answer to all Offerors. Canada may not answer questions that are not in a form it can distribute to all Offerors.

5.2. Offer Debriefings. Offerors may request a debriefing on the results of the solicitation of offers process. Offerors should make such a request to the STANDING OFFER AUTHORITY within 15 business days from its receipt of the results of the solicitation of offers process. Canada may provide the debriefing in writing, by telephone, or in person.

5.3. Offer Challenge and Recourse Mechanisms.

- a. **Challenges to Procurement Process.** Several mechanisms are available to potential suppliers to challenge aspects of the procurement process up to and including issuance of a Standing Offer. Canada encourages suppliers to first bring their concerns to the attention of the Standing Offer Authority.
- b. **Offer Challenge and Recourse Mechanisms.** Canada's CanadaBuys website, under the heading "[Following up on a bid](#)", contains information on potential complaint bodies such as:
 - i. Office of the Procurement Ombud (OPO)
 - ii. Canadian International Trade Tribunal (CITT)
- c. **Deadlines for Filing Complaints.** There are strict deadlines for filing complaints; the time periods vary depending on the particular complaint body. Suppliers should therefore act quickly when they want to challenge any aspect of the procurement process.

6. Technical Proposal and Forms.

6.1. Technical Offer Contents.

- a. **Requirements.** Offerors should:
 - i. demonstrate their understanding of the requirements contained in the solicitation of offers;
 - ii. concisely explain how they will meet these requirements; and
 - iii. address the points that are subject to the evaluation criteria against which the Offer will be evaluated. Simply repeating a statement contained in the solicitation of offers is not sufficient.
- b. **Organization.** Offerors should address and present topics in the order of the evaluation criteria under the same headings. To avoid duplication, an Offeror may refer to different sections of its offer by identifying where it has already addressed the subject topic, by identifying the specific paragraph and page.

6.2. Offer Submission Form. Each Offeror is requested to include the Offer Submission Form (Annex Offer Submission Form) with their offers. If Canada determines that the information required by the Offer Submission Form is incomplete or requires correction, Canada will provide the Offeror with a deadline to do so.

6.3. Offeror Declaration Form. Each Offeror is required to include the Offeror Declaration Form (Annex Offeror Declaration Form) in which it certifies to Canada all the information required by the Offeror Declaration. If Canada determines that the information required by the Offeror Declaration Form is incomplete or requires correction, Canada will provide the Offeror with a deadline to do so.



7.1 Financial Offer. Offerors must submit their financial offer in accordance with the Pricing Schedule detailed below.

PRICING SCHEDULE

The Offeror **must** complete this pricing schedule and include it in their financial offer. Prices must be in Canadian dollars and applicable taxes are extra.

The financial offer will be opened only for those companies who have met the mandatory requirements and who have achieved the minimum required overall score for the technical evaluation criteria which are subject to point rating. The financial proposal will be assigned a score out of a maximum 30 points. The lowest responsive Total Evaluated Blended Rate will receive a score of 30. Other responsive offers will be pro-rated in accordance with the formula in the Basis of Selection.

Rates as offered per year will remain fixed during the course of the Standing Offer. Increases to the hourly rates will not be permitted during that Standing Offer period.

The table below is for **financial evaluation purposes only**. Offerors will be evaluated against the overall total blended rate.

			SO issuance to March 31, 2027	April 1, 2027 to March 31, 2028	April 1, 2028 to March 31, 2029	April 1, 2029 to March 31, 2030	April 1, 2030 to March 29, 2031			
Line	Position	Name of Resource	Hourly Rate (A)	Hourly Rate (B)	Hourly Rate (C)	Hourly Rate (D)	Hourly Rate (E)	Sum of A to D (F)	Factor % (G)	Blended Rate (H) = (F x G)
1	Senior Manager/Project Contact		\$	\$	\$	\$	\$		0.13	\$
2	Senior Technical Expert - Environmental Site Assessment		\$	\$	\$	\$	\$		0.12	\$
3	Senior Technical Expert – Human Health Risk Assessor		\$	\$	\$	\$	\$		0.12	\$
4	Senior Technical Expert – Ecological Risk Assessor		\$	\$	\$	\$	\$		0.12	\$
5	Senior Environmental Professional (Sediment Scientist)		\$	\$	\$	\$	\$		0.12	\$
6	Senior Environmental Engineer (Remediation)		\$	\$	\$	\$	\$		0.12	\$



7	Senior Field Technician		\$	\$	\$	\$	\$		0.075	\$
8	Intermediate Project Professional		\$	\$	\$	\$	\$		0.075	\$
9	Junior Project Professional		\$	\$	\$	\$	\$		0.025	\$
10	Intermediate Field Technician		\$	\$	\$	\$	\$		0.05	\$
11	GIS Analyst		\$	\$	\$	\$	\$		0.025	\$
	Total Evaluated Blended Rate Column H, Line 1 to 11							\$ _____ (GST/HST Extra)		



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Offerors **must** provide hourly rates for the following additional resource categories and include it with their submission. These rates will form part of the basis of payment for the duration of the standing offer but will not form part of the financial evaluation.

	SO issuance to March 31, 2027	April 1, 2027 to March 31, 2028	April 1, 2028 to March 31, 2029	April 1, 2029 to March 31, 2030	April 1, 2030 to March 29, 2031
Resource Category	Hourly Rate (A)	Hourly Rate (B)	Hourly Rate (C)	Hourly Rate (D)	Hourly Rate (E)
Climatologist	\$	\$	\$	\$	\$
Hydrogeologist	\$	\$	\$	\$	\$
Hydrologist	\$	\$	\$	\$	\$
Aquatic Biologist	\$	\$	\$	\$	\$
Terrestrial Biologist	\$	\$	\$	\$	\$
Site Surveyor	\$	\$	\$	\$	\$
Draftsperson	\$	\$	\$	\$	\$
Administrative Support staff	\$	\$	\$	\$	\$
Archaeologist	\$	\$	\$	\$	\$
Geotechnologist	\$	\$	\$	\$	\$

Other Costs

DFO may require the supplier to purchase call-up specific materials or incur costs not listed in the tables above, to successfully execute the tasks within a call-up (e.g. analysis of samples, materials and supplies required for samples collection, etc.). Should DFO require any material, the supplier will be re-imbursed at cost including shipping and handling (if applicable) with a maximum of 10% mark-up. Authorization for the purchase of materials or other items that will cause the Offeror to incur additional costs for call-ups must be authorized by the Project Authority in advance and specified within the call-up. DFO will only pay for materials as specified in the call-up and will not be responsible for materials purchased outside of the ones required in the call-up.

7.2. Exchange Rate Fluctuation. Canada is not offering exchange rate fluctuation risk mitigation for this solicitation of offer. Canada will declare any offer non-compliant if there is any indication that offer is conditional on exchange rate fluctuation protection.

8. Technical Evaluation.

8.1 Mandatory Technical Criteria. Canada will review each offer for compliance with the mandatory technical criteria of the solicitation of offers. Any element of the technical criteria identified specifically with the words “must” or “mandatory” is a mandatory requirement. For mandatory technical criteria, see “Annex-Technical Criteria”.



8.2 Point-Rated Technical Criteria. Canada will rate each offer by assigning a score to the rated requirements, identified in the solicitation of offers by the word "rated" or by reference to a score. Offerors who fail to submit complete offers with all the information requested by this solicitation of offers will be rated accordingly. For point-rated technical criteria, see "Annex-Technical Criteria".

9. Financial Evaluation.

9.1 Evaluation of Price. Canada will evaluate all offers in Canadian dollars, Applicable Taxes excluded, delivery, and Canadian customs duties and excise taxes included.

9.2. Price Justification. If an offer is the sole compliant offer received, the Offeror must provide, on Canada's request, one or more of the following:

- a. a current published price list indicating the percentage discount available to Canada;
- b. a copy of paid invoices for the like quality and quantity of the goods, services, or both sold to other customers;
- c. a price breakdown of all costs (including labour, materials, transport, general and administrative overhead, transportation, etc.) and profit;
- d. price or rate certifications; and
- e. any other supporting documentation that Canada may request.

10. Evaluation Procedures.

10.1. Assessment. Canada will assess offers in accordance with the entire requirement of the solicitation of offers including the Technical and Financial evaluation criteria. Canada will declare any offer that fails to meet all mandatory solicitation requirements non-compliant.

10.2. Conduct of Evaluation.

- a. **Support for Offer Requirements.** Canada may, but will have no obligation to, do the following:
 - i. seek clarification or verification as to any information provided,
 - ii. contact any references to verify any information it submitted,
 - iii. request information about the Offeror's legal status,
 - iv. conduct a survey of the Offeror's facilities,
 - v. examine the Offeror's technical, managerial, and financial capabilities,
 - vi. correct any error in
1. the extended pricing of offers by using unit pricing, or
2. the quantities in offers to reflect the quantities stated in the solicitation of offers (and, in the case of error in the extension of prices, the unit price will govern),
- vii. verify any information the Offeror provided, or
- viii. interview, at the Offeror's sole cost, the Offeror, any resources it proposes to fulfill the solicitation of offers requirements or both.
- b. **Compliance.** The Offeror must comply with any such request within the time specified in Canada's request. Failure to comply will render the offer non-compliant.

10.3. Evaluation Based on Documents Provided. Unless otherwise specified in this solicitation of offers, Canada will evaluate only the documentation provided with the offer. Canada will not consider information such as references to website addresses where additional information can be found, or technical manuals or brochures not submitted with the offer.



10.4. Evaluation Team. An evaluation team composed of representatives of Canada will evaluate the offers.

10.5. Rights of Canada. Canada may:

- a. reject any or all offers in response to the solicitation of offers;
- b. enter into negotiations with Offerors on any or all aspects of their offers;
- c. accept any offer in whole or in part without negotiations;
- d. cancel the solicitation at any time;
- e. reissue the solicitation;
- f. if no compliant offers are received and the requirement is not substantially modified, reissue the solicitation of offers by inviting only the Offerors who submitted an offer to resubmit within a period designated by Canada; or
- g. negotiate with the sole compliant Offeror to ensure the best value to Canada.

10.6. Rejection of Offer.

- a. **Corrective Measure Rejection.** Canada **will** reject an offer where the Offeror or subcontractor included as part of the offer is subject to a corrective measure, following an assessment under the Vendor Performance Corrective Measure (VPCM) Policy, which renders them ineligible to offer on the requirement.
- b. **Rejection for Other Causes.** Canada **may** reject an offer where:
 - i. **Bankruptcy.** The Offeror is bankrupt or its activities are inoperable for an extended period;
 - ii. **Improper Conduct.** The Offeror or an employee or subcontractor included as part of the offer:
 1. based on evidence satisfactory to Canada, has committed fraud, bribery, fraudulent misrepresentation or failed to comply with laws protecting individuals against any manner of discrimination;
 2. based on evidence satisfactory to Canada, has conducted themselves improperly in the past;
 - iii. **Suspension or Termination.** The Offeror or an employee or subcontractor included as part of the offer has been suspended or terminated by Canada for default under a contract with Canada;
 - iv. **Poor Performance.** In Canada's opinion, the Offeror's performance on other contracts, including the efficiency and workmanship as well as the extent to which the Offeror performed the work in accordance with contractual clauses and conditions, is sufficiently poor to jeopardize the successful completion of the requirement;
 - v. **Not Good Value.** In Canada's opinion, it does not offer good value to Canada;
 - vi. **Prejudicing Integrity or Fairness - Multiple Offers from Single Offeror or Joint Venture.** Canada may apply additional scrutiny when it receives multiple offers in response to a solicitation of offers from a single Offeror or a Joint Venture. Canada may reject any offer submitted by a single Offeror or Joint Venture if their inclusion
 1. in the evaluation has the effect of prejudicing the integrity and fairness of the process, or
 2. in the procurement process would distort the solicitation of offers evaluation or would not provide good value to Canada.
 - vii. **Ability to Make Representations.** If Canada intends to reject an offer under (iii) or (iv), the STANDING OFFER AUTHORITY will inform the Offeror and give the Offeror ten calendar days within which to make representations, before making a final decision on the offer rejection.



11. Basis of Selection.

1. **Highest Combined Rating of Technical Merit and Price (all criteria). Compliant Offers.** For Canada to declare an offer compliant, the offer must:
 - I. comply with all the requirements of the solicitation of offers;
 - II. meet all mandatory criteria; and
 - III. obtain the required minimum of 30 points for the corporate criteria R1.1 to R1.6;
 - IV. obtain the required minimum of 90 points for the resource criteria R2.1 to R11.1; and
 - V. obtain the required minimum of **120 points** overall for the technical evaluation criteria which are subject to point rating. The rating is performed on a scale of **200 points**.
- b. **Compliance.** Canada will declare non-compliant offers not meeting the requirements specified in the above sub-clause "Compliant Offers".
- c. **Basis of Selection.** Canada will make its selection based on the compliant offer with the highest combined rating of technical merit and price for award. The ratio will be 70% for the technical merit and 30% for the price.
- d. **Technical Merit Score.** To establish the technical merit score, Canada will determine the overall technical score for each compliant offer as follows: total number of points obtained / maximum number of points available multiplied by the ratio of 70%.
- e. **Pricing Score.** To establish the pricing score, Canada will prorate each compliant offer against the lowest evaluated price and the ratio of 30% as follows: lowest evaluated price / offer price multiplied by the ratio of 30%.
- f. **Combined Ratings.** For each compliant offer, Canada will add the technical merit score and the pricing score to determine its combined rating.



STANDING OFFER

1. Offer.

1.1. Offer. The Offeror offers to perform the Work in accordance with the Statement of Work at Annex Statement of Work.

2. Fulfilling Standing Offer.

2.1. Fulfilling Standing Offer Requests. If an Identified User listed in the Standing Offer requests any of the goods, services, or both described in the Standing Offer, the Offeror will provide and deliver them to Canada in accordance with the pricing set out in the Standing Offer and with the conditions listed in the clause entitled "Offeror's Acknowledgements".

3. Standing Offer Term.

3.1. Term of the Standing Offer. The period for issuing Call-ups and providing services against the Standing Offer is from Contract Award to March 31, 2031 inclusive.

4. Standing Offer Security.

4.1. Security Requirements. There is no security requirement applicable to the STANDING OFFER.

Escort required at DFO site(s)

- The supplier and all individuals assigned to work on the contract or arrangement MUST NOT have access to PROTECTED or CLASSIFIED information/assets.
- The supplier and all individuals assigned to work on the contract or arrangement MUST NOT have unescorted access to restricted access areas of Fisheries and Oceans Canada facilities.
- The supplier and all individuals assigned to work on the contract or arrangement MUST NOT remove any PROTECTED or CLASSIFIED information/assets from DFO site(s).
- Subcontracts or arrangements with a third party are not to be awarded without the prior written permission of the Contracting Authority (i.e. a new SRCL must be submitted and processed following the same procedure as for the initial contract).

5. Standing Offer CLCAs.

5.1. Comprehensive Land Claims Agreements (CLCAs). The Standing Offer is for the delivery of the requirement detailed in the Standing Offer to the Identified Users across Canada, excluding locations within Yukon, Northwest Territories, Nunavut, British Columbia, Quebec, and Labrador that are subject to Comprehensive Land Claims Agreements (CLCAs). Any requirement for deliveries to locations within CLCAs areas within Yukon, Northwest Territories, Nunavut, British Columbia, Quebec, or Labrador will have to be treated as a separate procurement, outside of the Standing Offer.

6. Standing Offer Delivery.



6.1. Delivery Points. Delivery of the requirement will be made to delivery point (s) specified at Annex Statement of Work of the STANDING OFFER .

7. Call-Ups.

7.1. Call-Ups.

- a. **Forms.** Identified Users will use the form included in the Standing Offer, if applicable, to place Call-ups to order goods, services or both; they may also do so by telephone calls, fax or email requests, or by using Canada acquisition cards (Visa or MasterCard).
- b. **Written Confirmation.** Call-ups ordered and paid for with Canada acquisition cards (Visa and MasterCard), including Call-ups made by telephone calls must be confirmed in writing through emails, facsimiles or other means, and must be in accordance with the terms and conditions and at the prices stipulated in the Standing Offer.
- c. **Identified User.** The Identified User authorized to make Call-ups against the Standing Offer is:
Name: (To be inserted at Contract Award)
Title: _____
Telephone: ____ - ____ - ____
Email: _____
- d. **Call-Up Procedures.**
 - i. **Call-up by Authorized Representative.** The Identified User's authorized representative places a Call-up under the Standing Offer for goods, services, or both included in, and at the prices and in accordance with the terms and conditions specified in, the Standing Offer.
 - ii. **Call-Up Instrument.**
 - iii. **Confirmation of the Work.** The Identified User will authorize or confirm the Work using the duly completed forms or their equivalents as identified immediately below, or by using a Canada acquisition card (Visa or MasterCard).
 - iv. **Applicable Forms.** The Identified User may, for this purpose, use any of the following forms, which are available through PWGSC Forms Catalogue website:
 - PWGSC-TPSGC 942 Call-up Against a Standing Offer**OR**
Applicable Forms. The Identified User may use an equivalent form or electronic Call-up document that contains at least the following information:
 - the Standing Offer number,
 - a statement that incorporates the terms and conditions of the Standing Offer,
 - a description and the unit price for each line item,
 - the total value of the Call-up,
 - the point of delivery,
 - the delivery date,
 - a confirmation that funds are available under section 32 of the Financial Administration Act, and
 - a confirmation that the user is an Identified User under the Standing Offer with authority to enter into a contract.
- e. **Right of First Refusal**
The identified user will contact the highest-ranked offeror per region to determine if the requirement can be satisfied by that offeror. If the highest-ranked offeror per region is able to meet the requirement, a call-up is made against its standing offer. If that offeror is unable to meet the requirement, the identified user will contact the next ranked offeror. The identified user will continue and proceed as above until one offeror indicates that it can meet the requirement of the



call-up. In other words, call-ups are made based on the "right of first refusal" basis. When the highest-ranked offeror is unable to fulfill the need, the identified user is required to document its file appropriately. The resulting call-ups are considered competitive and the competitive call-up authorities can be used.

Any call-up for Work against this Standing Offer will be processed as follows:

- i) The Identified User will provide the highest-ranked Offeror per region with the following information:
 - i) the description of the services required and the location coordinates;
 - ii) the schedule deemed acceptable by the identified User, if applicable.
- ii) The Offeror must respond within two (2) business days with confirmation of their capability to perform the work.
- iii) The cost per service call will be established in accordance with the Basis of Payment as per Annex B;
- iv) The Offeror will be authorized by the identified User to proceed with the Work by the issuance of a duly completed and signed Call-up from a Purchase Order form. The Offeror shall not commence any work until it has received a Call-up which is signed by the Identified User. The Offeror acknowledges that any and all work performed in the absence of a signed call-up will be done at its own risk, and Canada shall not be liable for payment;
- v) If the highest-ranked offeror is unable to meet the requirement, the Identified User will contact the next ranked offeror and follow the same process.

A call-up made against this Standing Offer shall form a contract only for those goods or services, or both, which have been called-up, provided always that such call-up is made in accordance with the provisions of this Standing Offer.

- f. **Offer and Acceptance.** Issuance of a call-up to the Offeror constitutes acceptance of its offer and results in the creation of a contract between His Majesty the King in right of Canada and the Offeror for the goods, services or both described in the Call-up.

7.2. Limitation of Call-ups.

- a. **Identified User.** The Identified User may issue individual Call-ups against the Standing Offer for requirements that do not exceed \$400,000.00 (including any revisions to the Call-up and Applicable Taxes). Regardless of the Call-up limitation, the Identified User must ensure they do not exceed their basic contracting limit as specified in the Directive on the Management of Procurement.

8. Standing Offer Financial Limitation.

8.1. Financial Limitation.

- a. **Limitation for All Call-ups.** The total cost to Canada resulting from Call-ups against the Standing Offer must not exceed the sum of \$400,000.00 (Applicable Taxes excluded) unless otherwise authorized in writing by the Standing Offer Authority. The Offeror must not perform any work or services or supply any articles in response to Call-ups Contracts which would cause the total cost to Canada to exceed the said sum, unless an increase is so authorized.
- b. **Notification of Adequacy.** The Offeror must notify the Standing Offer Authority as to the adequacy of this sum when 75 percent of this amount has been committed, or four (4) months before the expiry date of the Standing Offer, whichever comes first. However, if at any



time, the Offeror considers that the said sum may be exceeded, the Offeror must promptly notify the Standing Offer Authority.

9. Standing Offer Revisions.

9.1. Revision of Standing Offer. Only the Standing Offer Authority can extend the period of retention of the Standing Offer or increase its usage, by issuing a written revision to the Standing Offer.

10. Standing Offers Reporting.

10.1. Standing Offers Reporting.

- a. **Maintaining Records.** The Offeror must compile and maintain records on its provision of goods and services to Canada under contracts resulting from the Standing Offer. The Offeror must ensure that this data include all of Canada's purchases (Call-ups), including those paid for by Canada acquisition cards.
- b. **Reporting Requirements.** The Offeror must provide this data in accordance with the reporting requirements detailed in Annex Usage Reporting Form. If some data are not available, the Offeror must indicate the reason in its report. If the Offeror has not provided any goods or services during a given period, it must provide a "nil" report.
- c. **Frequency of Submissions.** The Offeror must submit this data on a quarterly basis to the Standing Offer Authority.
- d. **Quarterly Reporting Periods.** The quarterly reporting periods are as follows:
 - first quarter: April 1 to June 30
 - second quarter: July 1 to September 30
 - third quarter: October 1 to December 31
 - fourth quarter: January 1 to March 31
- e. **Deadline for Submissions.** The Offeror must submit this data to the Standing Offer Authority no later than fifteen (15) calendar days after the end of the reporting period.

11. Standing Offer Withdrawal.

11.1. Withdrawal by Offeror. If the Offeror wishes to withdraw the Standing Offer after authority to Call-up against the Standing Offer has been given, it must give at least 30 calendar days' written notice to the Standing Offer Authority, unless specified otherwise in the Standing Offer. This 30 day period will start upon the Standing Offer Authority's receipt of the Offeror's notice and the withdrawal will be effective at the expiry of that period. The Offeror must fulfill any Call-ups that Canada made before the expiry of that period.

12. Standing Offer Acknowledgments.

12.1. Offeror Acknowledgments. The Offeror acknowledges the following:

- a. **No Commitment by Canada.** A Standing Offer is not a contract. Canada's issuance of a Standing Offer and Call-up Authority does not oblige it to procure or contract for any goods, services, or both listed in the Standing Offer.
- b. **Canada Can Use Various Means of Procurement.** Canada may procure any of the goods or services specified in the Standing Offer by any other means.



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- c. **Contract Only When Canada Requests Goods or Services.** A Call-up against the Standing Offer will form a contract only when those goods, services or both have been requested, provided that the Call-up is made in accordance with the terms of the Standing Offer.
- d. **Canada's Liability.** Canada's liability is limited to that arising from Call-ups against the Standing Offer made within the period specified in the Standing Offer.
- e. **Electronic Purchasing Tool.** Canada may require that its purchase of goods, services, or both listed in the Standing Offer be made using an electronic purchasing tool. Unless otherwise specified in the Standing Offer, Canada will give the Offeror at least 90 calendar days' notice before imposing this requirement.
- f. **No Assignment.** The Offeror cannot assign or transfer the Standing Offer, in whole or in part.
- g. **Joint Venture.** If the Offeror is a joint venture, the Offeror acknowledges that all joint venture members are jointly and severally and are solidarily liable for performing any Call-up resulting from the Standing Offer. Canada will set aside the Standing Offer if the membership of a joint venture changes.
- h. **Set-aside by Canada.** Canada may set aside the Standing Offer at any time.

13. Standing Offer Compliance.

13.1. Compliance.

- a. **Certifications.** Unless specified otherwise, the continuous compliance with the certifications provided by the Offeror with its offer or precedent to issuance of the Standing Offer (SO), and the ongoing cooperation in providing additional information are conditions of issuance of the Standing Offer and failure to comply will constitute the Offeror in default. Certifications are subject to verification by Canada during the entire period of the Standing Offer and of any resulting contract.
- b. **Code of Conduct.** The Offeror will comply with the Code of Conduct for Procurement for the period of the Standing Offer and of any resulting contracts.
- c. **Ineligibility and Suspension Policy.** The Ineligibility and Suspension Policy (the "Policy") and all related Directives incorporated by reference into the solicitation of offers on its closing date are incorporated into, and form a binding part of, the Standing Offer and any resulting contracts. All Offerors must comply with the Policy and Directives, which can be found on PWGSC's website at [Ineligibility and Suspension Policy](#).

14. Anti-forced Labour Requirement – Standing Offer.

14.1. Offeror's Statement. The Offeror states that the goods or services or both offered and described in the Standing Offer are not mined, manufactured, or produced wholly or in part by forced labour. In performing the Call-up, the Offeror must not, directly or indirectly, provide services through the use of forced labour. Regardless of who acts as an importer, the Offeror must not, directly or indirectly, deliver offered goods to Canada or import offered goods into Canada the importation of which is prohibited under ss. 136(1) of the Customs Tariff and tariff item No. 9897.00.00 of the [Customs Tariff](#) – Schedule (as amended from time to time), because they are mined, manufactured, or produced wholly or in part by forced labour.

14.2. Effect of Tariff Classification Determination or Investigation. If a tariff classification determination is made under the Customs Act that the importation of the goods or any part of the goods are prohibited, the Offeror must immediately so notify the Standing Offer Authority. If the goods or any part of the goods are classified under tariff item no. 9897.00.00 of the [Customs Tariff](#) – Schedule as mined,



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manufactured, or produced wholly or in part by forced labour, Canada may set aside the Standing Offer in accordance with the sub-clause entitled "Set Aside on Default". If the Offeror is aware that the goods, or any part of the goods, are being or have been investigated regarding whether they are prohibited from entry under tariff item No. 9897.00.00, the Offeror must immediately notify the Standing Offer Authority of that investigation.

14.3. Canada's Reasonable Grounds for Termination. If Canada has reasonable grounds to believe the goods or services or both were or are mined, manufactured, or produced in whole or in part by forced labour or were or are linked to human trafficking, Canada may set aside the Standing Offer. Reasonable grounds for making such a determination may include

- a. Findings or Withhold Release Orders issued by the United States Customs and Border Protection, under the [US Trade Facilitation and Trade Enforcement Act](#) (TFTEA) of 2015, or
- b. Credible evidence from a reliable source.

14.4. Offeror's Conviction in Canada of Specified Offences. Canada may set aside the Standing Offer if the Offeror has, in the past three years, been convicted of any of the following offences under the [Criminal Code](#) or the [Immigration and Refugee Protection Act](#):

- a. **Criminal Code.**
 - i. section 279.01 (Trafficking in persons),
 - ii. section 279.011 (Trafficking of a person under the age of eighteen years),
 - iii. subsection 279.02(1) (Material benefit - trafficking),
 - iv. subsection 279.02(2) (Material benefit - trafficking of person under 18 years),
 - v. subsection 279.03(1) (Withholding or destroying documents - trafficking),
 - vi. subsection 279.03(2) (Withholding or destroying documents - trafficking of person under 18 years), or
- b. **Immigration and Refugee Protection Act.**
 - i. section 118 (Trafficking in persons).

14.5. Offeror's Conviction Abroad of Similar Offences. If the Offeror has, in the past three years, been convicted of an offence in a jurisdiction other than Canada that, in Canada's opinion, is similar to any of the offences identified in the immediately preceding clause entitled "Offeror's Conviction in Canada of Specified Offences", Canada may immediately set aside the Standing Offer.

14.6. Determination of Similarity of Offences. For the purposes of determining whether a foreign offence is similar to a listed offence, Canada will take into account the following factors:

- a. in the case of a conviction, whether the court acted within its jurisdiction,
- b. whether the Offeror was afforded the right to appear during the court's proceedings or to submit to the court's jurisdiction,
- c. whether the court's decision was obtained by fraud, or
- d. whether the Offeror was entitled to present to the court every defence that the Offeror would have been entitled to present if the proceeding had been tried in Canada.

14.7. Representations from the Offeror. If Canada intends to set aside the Standing Offer under this section, Canada will so inform the Offeror and give the Offeror an opportunity to make written representations before making a final decision. Unless Canada establishes a different deadline, the Offeror must submit such written representations within 30 calendar days from receiving Canada's notice of concern.



15. Standing Offer Set Aside.

15.1. Set Aside by Canada.

- a. **Set Aside on Default.** The Standing Offer Authority may, upon written notice to the Offeror, set aside the Standing Offer of any Offeror who is in default of any of its obligations under the Standing Offer and any Call-up issued against the Standing Offer. The set-aside will take effect immediately or at the expiration of a cure period specified in the notice, if the Offeror has not cured the default to the Standing Offer Authority's satisfaction within that cure period.
- b. **Set Aside on Insolvency.** The Standing Offer Authority may, upon written notice to the Offeror, immediately set aside the Standing Offer if
 - i. the Offeror becomes bankrupt or insolvent, or takes the benefit of any statute relating to bankrupt or insolvent debtors,
 - ii. a receiver is appointed under a debt instrument or a receiving order is made against the Offeror, or
 - iii. an order is made or a resolution passed for the Offeror's winding-up.

15.2. Federal Contractors Program for Employment Equity - Set Aside. The Offeror understands and agrees that, when an Agreement to Implement Employment Equity (AIEE) exists between the Offeror and Employment and Social Development Canada (ESDC)-Labour, the AIEE must remain valid during the entire period of the Standing Offer and of any ensuing Call-up. If the AIEE becomes invalid, the name of the Offeror will be added to the "FCP Limited Eligibility to Bid" list. The imposition of such a sanction by ESDC may result in the setting aside of the Standing Offer.

16. Standing Offer Disclosure.

16.1. Proactive Disclosure of Contracts with Former Public Servants. By providing information on its status, with respect to being a former public servant in receipt of a [Public Service Superannuation Act](#) (PSSA) pension, the Offeror has agreed that this information will be reported on departmental websites as part of the published proactive disclosure reports, in accordance with [Contracting Policy Notice: 2019-01](#) of the Treasury Board Secretariat of Canada.

16.2. Disclosure of Information. The Offeror:

- a. consents to Canada disclosing its **STANDING OFFER** unit prices or rates, and
- b. acknowledges that it will have no right to claim against Canada, the Identified User, or their respective employees, agents, or representatives in relation to such disclosure.

17. Standing Offer Publication of Information.

17.1. Publication of STANDING OFFER Information.

- a. **Offeror's Consent to Publication.** The Offeror acknowledges that Canada may publish certain information related to the **STANDING OFFER** or a catalogue, including:
 - (i) the conditions of the STANDING OFFER,
 - (ii) the Offeror's name and procurement business number and the name, address, telephone number, fax number, and email address of its representative,
 - (iii) the Offeror's profile and its level of security clearance, and
 - (iv) the Offeror's qualified domains of expertise or the categories for which the Offeror has qualified.
- b. **Errors, etc. in Published Information.** Canada will not be liable for any errors, inconsistencies, or omissions in any such published information. If the Offeror identifies any error,



inconsistency, or omission, the Offeror will immediately notify the **STANDING OFFER** Authority.

18. Standing Offer Access to Information.

18.1. Access to Information. The Offeror acknowledges:

- a. that the records that it creates and that are under the control of Canada are subject to the Access to Information Act,
- b. Canada's responsibilities under that statute and that, accordingly, it must, to the extent possible, assist Canada in discharging those responsibilities, and
- c. that section 67.1 of the [Access to Information Act](#) provides that any person who destroys, alters, falsifies, or conceals a record, or directs anyone to do so, with the intent of obstructing the right of access that is provided by the Access to Information Act is guilty of an offence and is liable to imprisonment or a fine, or both.

19. Standing Offer Applicable Laws.

19.1. Applicable Laws. The laws in force in Newfoundland and Labrador will govern the Standing Offer and any Call-up resulting from the Standing Offer and be used to interpret the Call-up.

20. Standing Offer Authorities.

20.1. Authorities.

Standing Offer Authority

The Standing Offer Authority is:

Name: Louise Martel
Title: Contracting Specialist
Organization: Fisheries and Oceans Canada
Address: 200 Kent Street
Ottawa, Ontario
K1A 0E6

E-mail address: DFO.Tenders-Soumissions.MPO@dfo-mpo.gc.ca

The Standing Offer Authority is responsible for the establishment of the Standing Offer, its administration and its revision, if applicable. Upon the making of a Call-up, as Contracting Authority, he or she is responsible for any contractual issues relating to individual Call-ups made against the Standing Offer by any Identified User.

The Project Authority for the Standing Offer is: (To be inserted at Award)

Name: _____
Title: _____
Organization: _____
Address: _____
Telephone: ____ - ____ - ____
Facsimile: ____ - ____ - ____
E-mail address: _____



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The Project Authority is the representative of the department or agency for whom the Work will be carried out pursuant to a Call-up under the Standing Offer and is responsible for all the technical content of the Work under the resulting Call-up.

Offeror's Representative

Name: _____

Title: _____

Organization: _____

Address: _____

Telephone: ____ - ____ - _____

Facsimile: ____ - ____ - _____

E-mail address: _____

21. Standing Offer Priority of Documents.

21.1. Standing Offer Priority of Documents. If there is a discrepancy between the wording of any documents that appear on the list, the wording of the document that first appears on the list has priority over the wording of any document that subsequently appears on the list.

- a. the call up against the Standing Offer, including any annexes;
- b. the articles of the Standing Offer;
- c. Annex Statement of Work;
- d. Annex Basis of Payment (if applicable);
- e. the Offeror's Offer dated _____, (to be inserted at standing offer award)

22. Standing Offer Transition to an e-Procurement Solution (EPS).

22.1. Transition to an e-Procurement Solution (EPS).

- a. **Use of EPS.** During the period of the Standing Offer, Canada may transition to an EPS for more efficient processing and management of individual call-ups for any or all of the SO's applicable goods and services. Canada reserves the right, at its sole discretion, to make the use of the new e-procurement solution mandatory.
- b. **Notice Period.** Canada agrees to provide the Offeror with at least 90 calendar days' notice to allow for any measures necessary for the integration of the Offer into the EPS. The notice will include a detailed information package indicating the requirements, as well as any applicable guidance and support.
- c. **Offeror Elects Not To Use EPS.** If the Offeror chooses not to offer their goods or services through the e-procurement solution, the Standing Offer may be set aside by Canada.



RESULTING CONTRACT CLAUSES

The following clauses and conditions apply to and form part of any Call-up against the Standing Offer.

1. Summary.

1.1. Work. The Contractor must perform the Work described in the call-up against the Standing Offer.

2. Performance of Work.

2.1. Conduct of the Work.

- a. Performance.** Subject to section "Suspension of the Work", the Contractor agrees to fulfill all obligations in full compliance with the requirements and Specifications of the Contract, regardless of any potential dispute with Canada. The Contractor must:
 - i. perform the Work diligently and efficiently;
 - ii. except for Government Property, supply everything necessary to perform the Work;
 - iii. use, as a minimum, quality assurance procedures, inspections and controls generally used and recognized by the industry to ensure the degree of quality required by the Contract;
 - iv. select and employ a sufficient number of qualified people; and
 - v. perform the Work in accordance with standards of quality acceptable to Canada and in full conformity with the Specifications and all the requirements of the Contract.
- b. Responsibilities.** The Contractor represents and warrants that it and all its resources and subcontractors:
 - i. are competent to perform the Work;
 - ii. have everything necessary to perform the Work, including the resources, facilities, labour, technology, equipment, and materials;
 - iii. have the necessary qualifications, including knowledge, skill, know-how and experience, and the ability to use them effectively to perform the Work; and
 - iv. will maintain any credentials, accreditations, licenses and certifications necessary to perform the Work throughout the duration of the Contract.

2.2. Subcontracts.

- a. Right to Subcontract.** The Contractor may subcontract the supply of goods or services that are customarily subcontracted by the Contractor. In any other instance, the Contractor must obtain the prior consent in writing of the Contracting Authority. The Contracting Authority may require the Contractor to provide such particulars of the proposed subcontract as he considers necessary.
- b. Contractor Responsibilities.** Subcontracting does not relieve the Contractor from any of its obligations under the Contract or impose any liability upon Canada to a subcontractor. In any subcontract, the Contractor agrees to bind the subcontractor by the same conditions by which the Contractor is bound under the Contract, unless the Contracting Authority requires or agrees otherwise, with the exception of requirements under the Federal Contractors Program for employment equity which only apply to the Contractor.

3. Term of the Contract.

3.1. Initial Term. The period of the Contract is from the date of Standing Offer issuance to 31 March, 2031 inclusive.



3.2. inclusive.

4. Transportation.

4.1. Transportation Costs and Carrier Liability.

- a. **Transportation Costs.** If transportation costs are payable by Canada under the Contract and the Contractor makes the transportation arrangements, the Contractor must ship using the most direct and economical means consistent with normal shipping practice. The Contractor must show these costs as a separate item on the invoice.
- b. **Transportation Carriers' Liability.** The federal government's policy of underwriting its own risks precludes payment of insurance or valuation charges for transportation beyond the point at which ownership of goods passes to the federal government determined by the Incoterms applicable to the Contract. Where increased carrier liability is available without charge, the Contractor must obtain the increased liability for shipment.

5. Inspection and Acceptance.

5.1. Inspection, Acceptance and Cure.

- a. **Canada's Rights.** All the Work is subject to inspection and acceptance by Canada.
 - i. **Inspection and Acceptance.** Canada has the right to inspect and accept all Work. Canada's inspection and acceptance of the Work by Canada do not relieve the Contractor of its responsibility for defects or other failures to meet the requirements of the Contract.
 - ii. **Rejection and Cure.** If Canada rejects any Work, it may require the Contractor to correct or replace the Work at no additional cost.

6. Basis of Payment.

1. Basis of Payment-Firm Hourly Rates.

- a. Canada will pay the Contractor firm hourly rates as described in Annex Basis of Payment. Customs duties are included and Applicable Taxes are extra.

6.1. Limitation of Expenditure.

- a. **Total Expense.** Canada's total liability to the Contractor under the Contract must not exceed \$ (Contracting Authority to insert the amount at Contract award). Customs duties are included, excluded and Applicable Taxes are extra.
- b. **Modifications.** No increase in the total liability of Canada or in the price of the Work resulting from any design changes, modifications or interpretations of the Work, will be authorized or paid to the Contractor unless these design changes, modifications or interpretations have been approved, in writing, by the Contracting Authority before their incorporation into the Work. The Contractor must not perform any work or provide any service that would result in Canada's total liability being exceeded before obtaining the written approval of the Contracting Authority. The Contractor must notify the Contracting Authority in writing as to the adequacy of this sum:
 - i. when it is 75% committed, or
 - ii. four months before the contract expiry date, or



- iii. as soon as the Contractor considers that the contract funds provided are inadequate for the completion of the Work,
whichever comes first.
- c. **Estimates.** If the notification is for inadequate contract funds, the Contractor must provide to the Contracting Authority a written estimate for the additional funds required. Provision of such information by the Contractor does not increase Canada's liability.

7. Payments.

7.1. Invoices.

- a. **Invoice Submission.** The Contractor must submit invoices for each delivery in accordance with the Contract. Each invoice must indicate whether it covers partial or final delivery.
- b. **Invoice Details.** Invoices must show:
 - i. the date, the name and address of the client department, item or reference numbers, deliverable or description of the Work, contract number, Client Reference Number , Procurement Business Number, and financial code(s);
 - ii. details of expenditures (such as item, quantity, unit of issue, unit price, fixed time labour rates and level of effort, subcontracts, as applicable) in accordance with the Basis of Payment, exclusive of Applicable Taxes;
 - iii. deduction for holdback, if applicable;
 - iv. the extension of the totals, if applicable;
 - v. if applicable, the method of delivery together with date, case numbers and part or reference numbers, shipment charges and any other additional charges; and
 - vi. Applicable Taxes as a separate item along with corresponding registration numbers from the tax authorities. The Contractor must identify on all invoices all items that are zero-rated, exempt or to which Applicable Taxes do not apply.
- c. **Payment of Taxes.** Canada will pay Applicable Taxes. It is the sole responsibility of the Contractor to charge Applicable Taxes at the correct rate. The Contractor must pay Applicable Taxes, ancillary taxes, and any commodity tax, on taxable goods or services used or consumed in the performance of the Contract (in accordance with applicable legislation), including for material incorporated into real property.
- d. **Exemptions.** The Contractor is not entitled to use Canada's exemptions from any tax, such as provincial sales taxes, unless otherwise specified by law.
- e. **Withholding for Non-Residents.** Canada will withhold 15 percent of the amount to pay the Contractor in respect of services provided in Canada if the Contractor is not a resident of Canada unless the Contractor obtains a valid waiver from the Canada Revenue Agency.

7.2. Invoicing Instructions.

- a. **Invoice Submission.** The Contractor cannot submit any invoices until all Work identified in the invoice is completed.
- b. **Invoice Distribution.** The Contractor must forward:
 - i. the invoice to the following address for certification and payment:
DFO.invoicing-facturation.MPO@DFO-MPO.gc.ca
 - ii. one copy to the Project Authority (Name to be inserted at award) and to ;



iii. AP Coder (Name to be inserted at award)

7.3. Payment Period. Canada will pay the Contractor's undisputed invoice amount within 30 days after receipt of invoice in acceptable form and content. In the event an invoice is not of an acceptable form and content, Canada will notify the Contractor within 15 days of receipt and the 30 day payment period will begin on receipt of a conforming invoice.

7.4. Late Payments.

- a. **Interest on Late Payments.** Canada will pay the Contractor simple interest at the Average Rate plus 3 percent per year on any amount that is Overdue, from the date that amount becomes Overdue until the day before the date of payment, inclusive. The Contractor is not required to provide notice to Canada for interest payable.
- b. **Exceptions.** Canada will pay interest only if Canada is responsible for the delay in paying the Contractor. Canada will not pay interest on Overdue advance payments.

7.5. Interest on Overdue Accounts. Interest on Overdue Accounts will not apply to payments made by credit cards.

7.6. Right to Set-Off. When Canada makes a payment to the Contractor, Canada may deduct any amount payable to Canada by the Contractor under this or any other current contract.

7.7. Electronic Payment of Invoices. The Contractor accepts that Canada will use the following electronic payment instruments:

- a. Visa Acquisition Card,
- b. MasterCard Acquisition Card,
- c. Direct Deposit (Domestic and International),

7.8. Taxes.

- a. Federal government departments and agencies are required to pay Applicable Taxes.
- b. Applicable Taxes will be paid by Canada as provided in the Invoice Submission section. It is the sole responsibility of the Contractor to charge Applicable Taxes at the correct rate in accordance with applicable legislation. The Contractor agrees to remit to appropriate tax authorities any amounts of Applicable Taxes paid or due.
- c. The Contractor is not entitled to use Canada's exemptions from any tax, such as provincial sales taxes, unless otherwise specified by law. The Contractor must pay applicable provincial sales tax, ancillary taxes, and any commodity tax, on taxable goods or services used or consumed in the performance of the Contract (in accordance with applicable legislation), including for material incorporated into real property.
- d. In those cases where Applicable Taxes, customs duties, and excise taxes are included in the Contract Price, the Contract Price will be adjusted to reflect any increase, or decrease, of Applicable Taxes, customs duties, and excise taxes that will have occurred between offer submission and contract award. However, there will be no adjustment for any change to increase the Contract Price if public notice of the change was given before offer submission date in sufficient detail to have permitted the Contractor to calculate the effect of the change.
- e. Tax Withholding of 15 Percent – Canada Revenue Agency.
Pursuant to the [Income Tax Act](#), 1985, c. 1 (5th Supp.) and the [Income Tax Regulations](#), Canada must withhold 15 percent of the amount to be paid to the Contractor in respect of



services provided in Canada if the Contractor is not a resident of Canada, unless the Contractor obtains a valid waiver from the [Canada Revenue Agency](#). The amount withheld will be held on account for the Contractor in respect to any tax liability which may be owed to Canada.

8. Method of Payment.

8.1. Monthly Payments. Canada will pay the Contractor on a monthly basis for Work performed during the month covered by the invoice if

- a. the Contractor has properly submitted an accurate and complete invoice along with any other necessary documents,
- b. Canada has verified all such documents, and
- c. Canada has accepted the Work performed.

9. Intellectual Property – Canada to own Intellectual Property Rights in Foreground Information.

9.1. Records and Disclosure of Foreground Information.

- a. **Maintaining and Disclosing Records.** During and after the performance of the Contract, the Contractor must keep detailed records of the Foreground Information, including details of its creation. The Contractor must report and fully disclose to Canada all Foreground Information as required by the Contract. If the Contract does not specifically state when and how the Contractor must do so, the Contractor must provide this information when requested by Canada, whether before or after the completion of the Contract.
- b. **Canada's Access to Records.** Before and after final payment to the Contractor, the Contractor must provide Canada with access to all records and supporting data that Canada considers pertinent to the identification of Foreground Information.
- c. **Assumption.** For any Intellectual Property that was developed or created in relation to the Work, Canada will be entitled to assume that it was developed or created by Canada, if the Contractor's records do not list that Intellectual Property or do not indicate that it was created by the Contractor, or by someone on behalf of the Contractor, other than Canada.

9.2. Ownership of Intellectual Property Rights in Foreground Information.

- a. **Rights in the Foreground Information.** Canada owns all Intellectual Property Rights in the Foreground Information immediately upon creation. The Contractor does not have any rights to such Intellectual Property Rights, except as may be granted in writing by Canada.
- b. **Copyrighted Foreground Information.** The Contractor must incorporate the copyright symbol and one of the following notices, as appropriate, into all Foreground Information that is subject to copyright regardless of the form or medium upon which it is recorded: © His Majesty the King in Right of Canada (year), or © Sa Majesté le Roi du chef du Canada (année).
- c. **Contractor's Assistance.** The Contractor must execute any documents relating to the Intellectual Property Rights in the Foreground Information as Canada may require. The Contractor must, at Canada's expense, provide Canada all reasonable assistance in preparing and prosecuting any applications for registration of any Intellectual Property Rights in any jurisdiction (including the assistance of the inventor in the case on inventions).

9.3. License to Intellectual Property Rights in Background Information.

- a. **Canada's Rights to Background Information.** The Contractor grants to Canada a non-exclusive, perpetual, irrevocable, worldwide, fully-paid, and royalty-free license to use the



Background Information to the extent reasonably necessary for Canada to fully exercise all its rights in the deliverables and in the Foreground Information. The Contractor cannot restrict or modify this license.

- b. Included Rights.** Under its license, Canada may
 - i. disclose the Background Information to third parties bidding on or negotiating contracts with Canada and to sublicense or otherwise authorize the use of that information by any contractor engaged by Canada solely for the purpose of carrying out such contracts. Canada will require these third parties and contractors not to use or disclose that information except as may be necessary to offer, negotiate or carry out those contracts;
 - ii. disclose the Background Information to other governments for information purposes only;
 - iii. reproduce, modify, improve, develop, or translate the Background Information, in which case Canada, or a person designated by Canada, will own all the associated Intellectual Property Rights;
 - iv. for any custom-designed or custom-manufactured part of the Work, use and disclose to a contractor engaged by Canada the Background Information for the following purposes:
 - 1. to use, operate, maintain, repair, or overhaul such parts of the Work, and
 - 2. to manufacture spare parts for the maintenance, repair, or overhaul of any parts of the Work by Canada if those parts are not available on reasonable commercial terms to enable timely maintenance, repair, or overhaul.
- c. Access to Background Information.** The Contractor must make the Background Information promptly available to Canada for any legitimate purpose. For commercial off-the-shelf software, the Contractor's obligation to make the source code promptly available to Canada applies only to source code that is within the control of or can be obtained by the Contractor or any subcontractor.

9.4. Contractor's Right to Grant License. The Contractor represents and warrants that it has the right to grant to Canada the license and any other rights to use the Background Information. If a subcontractor or other third party owns the Intellectual Property Rights in any Background Information, the Contractor must

- a. have or promptly obtain a license from that subcontractor or third party that permits the Contractor's compliance with the preceding section entitled "License to Intellectual Property Rights in Background Information", or
- b. arrange, without delay, for the subcontractor or third party to promptly grant the required license directly to Canada.

9.5. Waiver of Moral Rights. If requested by Canada, during and after the Contract, the Contractor must provide a written permanent waiver of moral rights, as defined in the [Copyright Act](#), R.S., 1985, c. C-42, from every author that contributes to any Foreground Information subject to copyright protection that is a deliverable to Canada under the Contract. If the Contractor is an author of the Foreground Information, the Contractor permanently waives the Contractor's moral rights in that Foreground Information.

10. Government Property.

10.1. Care of Property. The Contractor must take reasonable and proper care of all Government Property while it is in its possession or subject to its control. The Contractor is responsible for any loss or damage resulting from its failure to do so other than loss or damage caused by ordinary wear and tear.



11. Copyright.

11.1. Copyright

- a. **Canada's Ownership in Copyright.** Canada holds the copyright in anything that the Contractor creates or develops as part of the Work and in which copyright subsists. The Contractor must incorporate the copyright symbol and either of the following notices, as appropriate: © His Majesty the King in right of Canada (year) or © Sa Majesté le Roi du chef du Canada (année).
- b. **Waiver of Moral Rights.** At the Contracting Authority's request, the Contractor must provide to Canada a written permanent waiver of moral rights as defined in the [Copyright Act](#), in a form acceptable to the Contracting Authority, from every author that contributed to the Work. If the Contractor is an author, the Contractor permanently waives the Contractor's moral rights.

12. Confidentiality.

12.1. Confidentiality Obligations

- a. **Contractor's Obligations.** The Contractor must keep confidential all information provided to the Contractor by or on behalf of Canada in connection with the Work. This includes any information that is confidential or proprietary to third parties, and all information conceived, developed or produced by the Contractor as part of the Work when copyright or any other intellectual property rights in such information belongs to Canada under the Contract. The Contractor must not disclose any such information without the written permission of Canada. The Contractor may disclose to a subcontractor any information necessary to perform a subcontract as long as the subcontractor agrees to keep the information confidential and the subcontractor only uses the information to perform a subcontract.
- b. **Canada's Obligations.** Subject to the [Access to Information Act](#) and to any right of Canada under the Contract to release or disclose, Canada agrees not to release or disclose outside the Government of Canada any information delivered to Canada under the Contract that is proprietary to the Contractor or a subcontractor.

12.2. Non-Confidential Information. The obligations of the Parties set out in this section do not apply to any information if the information:

- a. is publicly available from a source other than the other Party; or
- b. is or becomes known to a Party from a source other than the other Party, except any source that is known to be under an obligation to the other Party not to disclose the information; or
- c. is developed by a Party without the use of the information of the other Party.

13. Access to Information.

13.1. Access to Information. Records created by the Contractor, and under the control of Canada, are subject to the [Access to Information Act](#). The Contractor acknowledges the responsibilities of Canada under the [Access to Information Act](#) and must, to the extent possible, assist Canada in discharging these responsibilities. Furthermore, the Contractor acknowledges that section 67.1 of the [Access to Information Act](#) provides that any person, who destroys, alters, falsifies or conceals a record, or directs anyone to do so, with the intent of obstructing the right of access that is provided by the [Access to Information Act](#) is guilty of an offence and is liable to imprisonment or a fine, or both.

14. Accounts and Audit.



14.1. Accounts and Records.

- a. **Requirement to Keep Records.** The Contractor must maintain complete and accurate records of the estimated and actual cost of the Work, to enable Canada to determine whether the Contractor has performed the Work, the price charged for the Work is in accordance with the Contract terms and Canada has achieved best value.
- b. **Types of Records.** Such records include all tender calls, quotations, contracts, correspondence, source documents for accounting entries such as Excel or other spread sheets in numeric and machine readable form (not PDF copies), books and ledgers of initial accounting entries, work sheets, spreadsheets and other documentation supporting cost allocations, computations, reconciliations and assumptions made by the Contractor in relation to the Contract. The Contractor can only use copies if originals are unavailable due to unusual circumstances, such as fire, flood or theft.
- c. **Accounting System.** The Contractor must establish and maintain an accounting system that enables Canada to readily identify these records.
- d. **Availability of Records.** The Contractor must make these records available on request, for examination by Canada, or by Canada's representatives during normal business hours at the Contractor's office or place of business. If no such location is available, then the Contractor must make financial records, with the supporting or underlying documents and records, available for examination at a time and location that is convenient for Canada.
- e. **Retention of Records.** The Contractor must maintain such records, and Canada and its authorized representatives may examine such records, at all times during the period of this Contract and until the later of seven years after final payment and the settlement of all outstanding claims and disputes. Should an examination reveal any overpayments by Canada, these will be claimed by Canada and immediately repaid by the Contractor.
- f. **Review by Canada.** Canada and its authorized representatives may examine, and make copies of, or extract from, all such records in whatever form they may be kept, relating to or pertaining to this Contract, including but not limited to those kept by the Contractor, its employees, agents, successors, and subcontractors.
- g. **Full Compliance.** The Contractor must ensure that all subcontractors and affiliates comply with the requirements of this clause.

15. Insurance.

15.1. Insurance Requirements.

- a. The Contractor must:
 - i. comply with the insurance requirements specified below; and
 - ii. maintain the required insurance coverage throughout the Contract Period. Compliance with the insurance requirements does not release the Contractor from or reduce its liability under the Contract.
- b. **Additional Insurance.** The Contractor is responsible for deciding if additional insurance coverage is necessary to fulfill its obligations under the Contract and to ensure compliance with any applicable law. Any additional insurance coverage is at the Contractor's expense and for its own benefit and protection.
- c. **Certificate of Insurance.** The Contractor must forward to Canada within ten business days after Contract award, a Certificate of Insurance showing the insurance coverage and confirming that the insurance policy complying with the requirements is in force. Canadian-based Contractors must obtain coverage from an insurer licensed to carry out business in



Canada; however, foreign-based Contractors must obtain coverage from an insurer with an A.M. Best Rating no less than "A-". If requested by Canada, the Contractor must forward to Canada a certified true copy of all applicable insurance policies.

15.2. Commercial General Liability Insurance

- a. **Minimum Amount.** The Contractor must obtain and maintain commercial general liability insurance in an amount usual for a contract of this nature, but for not less than \$2 million per accident or occurrence and in the annual aggregate.
- b. **Required Policy Inclusions.** The commercial general liability policy must include the following:
 - i. **Additional Insured:** Canada is added as an Additional Insured, but only for liability arising out of the Contractor's performance of the Contract. Canada's interest should read as follows: "Canada, as represented by Public Works and Government Services Canada".
 - ii. **Bodily Injury and Property Damage to third parties** arising out of the Contractor's operations.
 - iii. **Products and Completed Operations:** Coverage for bodily injury or property damage arising out of either goods or products manufactured, sold, handled, or distributed by the Contractor or operations that the Contractor has completed.
 - iv. **Personal Injury:** The coverage must include Violation of Privacy, Libel and Slander, False Arrest, Detention or Imprisonment, and Defamation of Character.
 - v. **Cross Liability/Separation of Insureds:** Without increasing the limit of liability, the policy must protect all insured parties to the full extent of coverage provided. The policy must also apply to each insured in the same manner and to the same extent as if a separate policy had been issued to each.
 - vi. **Blanket Contractual Liability:** The policy must, on a blanket basis or by specific reference to the Contract, extend to assumed liabilities in connection with contractual obligations.
 - vii. **Employees and Volunteers:** Employees and, if applicable, volunteers must be included as Additional Insured.
 - viii. **Employers' Liability** or confirmation that all employees are covered by workers' compensation (WSIB) or similar program.
 - ix. **Broad Form Property Damage including Completed Operations:** The policy must expand the Property Damage coverage to include certain losses that would otherwise be excluded by the standard care, custody, or control exclusion found in a standard policy.
 - x. **Notice of Cancellation:** The Contractor must give the Contracting Authority 30 calendar days' prior notice of cancellation of or any changes to the policy.
 - xi. **Minimum Coverage Period.** If the policy is written on a claims-made basis, coverage must be in place for a period of at least 12 months after the completion or termination of the Contract.
 - xii. **Owners' or Contractors' Protective Liability:** The policy must cover the damages that the Contractor becomes legally obligated to pay arising out of the operations of a subcontractor.
 - xiii. **Non-Owned Automobile Liability:** The policy must include coverage for suits against the Contractor resulting from the use of hired or non-owned vehicles.
 - xiv. **Third-Party Intellectual Property Rights:** The endorsement must include coverage for infringement of third-party intellectual property rights.



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xv. Sudden and Accidental Pollution Liability: The policy must protect the Contractor against liabilities arising from damages caused by accidental pollution incidents (minimum 120 hours).

xvi. Litigation Rights: Under subsection 5(d) of the [Department of Justice Act](#), if a suit is brought for or against Canada that the insurer would, but for this clause, have the right to pursue or defend on behalf of Canada as an Additional Named Insured under the insurance policy, the insurer must promptly contact the Attorney General of Canada to agree on the legal strategies by sending a letter, by registered mail or by courier, with an acknowledgement of receipt.

For the province of Quebec, send to:

Director Business Law Directorate,
Quebec Regional Office (Ottawa),
Department of Justice,
284 Wellington Street, Room SAT-6042,
Ottawa, Ontario, K1A 0H8

For other provinces and territories, send to:

Senior General Counsel,
Civil Litigation Section,
Department of Justice
234 Wellington Street, East Tower
Ottawa, Ontario K1A 0H8

The insurer must send a copy of the letter to the Contracting Authority. Canada may co-defend any action brought against Canada. All expenses that Canada incurs to do so will be at its own expense. If Canada decides to co-defend any such action but does not agree to a proposed settlement agreed to by the Contractor's insurer and the plaintiffs that would result in the settlement or dismissal of the action against Canada, then Canada will be responsible to the Contractor's insurer for any difference between the proposed settlement amount and the amount finally awarded or paid to the plaintiffs (including costs and interest) on behalf of Canada.

16. Certifications and Additional Information.

16.1. Compliance with Certifications. Unless specified otherwise, the Contractor will be in default if it does not continuously comply with the certifications it provided in its offer or before contract award or if the Contractor does not provide evidence about its compliance when requested by the Contracting Authority. Canada may verify the Contractor's certifications throughout the Contract Period.

16.2. Compliance with Laws. The Contractor must comply with all laws applicable to the performance of the Contract. The Contractor must provide evidence of compliance with such laws to Canada at such times as Canada may reasonably request.

16.3. Compliance with Code of Conduct. The Contractor must comply with the [Code of Conduct for Procurement](#).

16.4. Contingency Fees. The Contractor certifies and agrees that it has not paid and will not pay, directly or indirectly, any contingency fee for the solicitation, negotiation or obtaining of the Contract to any person (including, without limitation any individual who is required to file a return with the registrar



pursuant to section 5 of the [Lobbying Act](#)), other than an employee of the Contractor acting in the normal course of the employee's duties. In this section:

- a. "contingency fee" means any payment or other compensation that depends or is calculated based on a degree of success in soliciting, negotiating or obtaining the Contract; and
- b. "person" included any individual who is required to file a return with the registrar pursuant to section 5 of the [Lobbying Act](#) 1985, c. 44 (4th Supplement).

16.5. No Bribe. The Contractor certifies that it has not and will not offer, promise, give or pay any bribe, gift, benefit, or other inducement directly or indirectly to any official or employee of Canada or to any member of their family, in order to influence the issuance or administration of the Contract.

16.6. No Influence; No Financial Interest. The Contractor must not influence, seek to influence, or otherwise take part in any decision of Canada that might further the Contractor's own interests. The Contractor must have no financial interest in the business of any third party that causes or would appear to cause a conflict of interest in connection with the performance of the Work. The Contractor must immediately declare any such financial interest to the Contracting Authority.

16.7. No Conflict. The Contractor warrants that, to the best of its knowledge after making diligent inquiry, no conflict exists or is likely to arise in its performance of the Contract. If the Contractor becomes aware of any matter that causes or is likely to cause such a conflict, the Contractor must immediately disclose it to the Contracting Authority. If the Contracting Authority is of the reasonable opinion that such a conflict exists, it may either (i) require the Contractor to take steps to deal with the conflict or (ii) terminate the Contract for default. In this section, "conflict" means any matter, circumstance, interest, or activity affecting the Contractor, its personnel, or its subcontractors, that may impair or may appear to impair its ability to perform the Work diligently and independently.

16.8. Ethics Codes for Public Service. The Contractor acknowledges that individuals who are subject to the provisions of the [Conflict of interest Act](#), the Conflict of interest Code for Members of the House of Commons, the Values and Ethics Code for the Public Service or all other codes of values and ethics applicable within specific organizations cannot derive any direct or indirect benefit from the Contract.

16.9. Ineligibility and Suspension Policy Provisions. The Contract incorporates the *Ineligibility and Suspension Policy* and all related Directives incorporated by reference into the solicitation of offers on its closing date, and form a binding part of the Contract. The Contractor must comply with the provisions of the *Ineligibility and Suspension Policy* and Directives, found on Public Works and Government Services Canada's website at [Ineligibility and Suspension Policy](#).

16.10. Federal Contractors Program for Employment Equity - Default by the Contractor. The Contractor agrees that, when an Agreement to Implement Employment Equity (AIEE) exists between the Contractor and Employment and Social Development Canada (ESDC)-Labour, the AIEE must remain valid throughout the Contract Period. If the AIEE becomes invalid, Canada will add the name of the Contractor to the "FCP Limited Eligibility to Offer" list. The imposition of such a sanction by ESDC will result in the Contractor being in default.

16.11. Harassment in the Workplace.

- a. The Contractor acknowledges the responsibility of Canada to ensure, for its employees, a healthy work environment, free of harassment. A copy of the [Directive on the Prevention and Resolution of Workplace Harassment and Violence](#), which also applies to the Contractor, is available on the Treasury Board Web site.



- b. The Contractor must not, either as an individual, or as a corporate or unincorporated entity, through its employees or subcontractors, harass, abuse, threaten, discriminate against or intimidate any employee, contractor or other individual employed by, or under contract with Canada. Canada will advise the Contractor in writing of any complaint and the Contractor will have the right to respond in writing. Upon receipt of the Contractor's response, the Contracting Authority will, at its entire discretion, make a determination regarding the validity of the complaint and decide on any action required.

16.12. Invoice Submittal Certification. By submitting an invoice, the Contractor certifies that the invoice is consistent with the Work delivered and is in accordance with the Contract.

17. Proactive Disclosure of Contracts with Former Public Servants.

17.1. Proactive Disclosure of Contracts with Former Public Servants. By providing information on its status, with respect to being a former public servant in receipt of a [Public Service Superannuation Act](#) (PSSA) pension, the Contractor has agreed that this information will be reported on departmental websites as part of the published proactive disclosure reports, in accordance with [Contracting Policy Notice: 2019-01](#) of the Treasury Board Secretariat of Canada.

18. International Sanctions.

18.1. Sanctions Limitations. Canada cannot accept delivery of goods or services that originate, directly or indirectly, from the countries or persons subject to [economic sanctions](#).

18.2. Contractor Obligations.

- a. The Contractor must:
 - i. not supply to the Government of Canada any goods or services that are subject to economic sanctions,
 - ii. comply with changes to the regulations imposed during the Contract Period, and
 - iii. immediately advise Canada if it is unable to perform the Work because of the imposition of economic sanctions against a country or person or the addition of a good or service to the list of sanctioned goods or services.
- b. If the Parties cannot agree on a workaround plan, Canada will terminate the Contract for convenience.

19. Reciprocal Procurement Compliance.

19.1. Change of Location of Place of Business. The Contractor must notify the Contracting Authority in writing within 10 calendar days of any change in the location of its place of business taking effect, or, if the Contractor is a joint venture, any change in the location of the place of business of any member of the joint venture. Where possible, Canada requests that the Contractor provide as much advance notice as possible in writing of any proposed or planned change to the Contractor's place of business.

19.2. Termination Due to Change of Location. If Canada determines in its sole discretion that a change in location results in the Contractor no longer qualifying as a Canadian Supplier or a Supplier of an Applicable Trading Partner under this solicitation of offers, Canada may terminate the contract for default. It may also terminate the contract on a "no-fault" basis by providing thirty days notice to the Contractor.



Canada will only pay according to the Basis of Payment, for any part of the Work delivered, inspected, and accepted up to the date of termination. Despite any other provision of the Contract, there will be no other costs that will be paid to the Contractor as a result of the termination.

20. Anti-forced Labour Requirements.

20.1. Contractor's Statement. The Contractor states that the Work is not mined, manufactured, or produced wholly or in part by forced labour. In performing the Contract and regardless of who acts as an importer, the Contractor must not, directly or indirectly, deliver Work if it is mined, manufactured, or produced wholly or in part by forced labour.

20.2. Canada's Reasonable Grounds for Termination. If Canada has reasonable grounds to believe the Work was or is mined, manufactured, produced or carried out in whole or in part by forced labour or was or is linked to human trafficking, Canada may terminate the Contract for default. This determination is to be grounded in credible evidence from a reliable source.

20.3. Contractor's Conviction in Canada of Specified Offences. Canada may terminate the Contract for default if the Contractor has, in the past three years, been convicted of any of the following offences under the [Criminal Code](#) or the [Immigration and Refugee Protection Act](#):

a. Criminal Code.

- i. section 279.01 (Trafficking in persons),
- ii. section 279.011 (Trafficking of a person under the age of eighteen years),
- iii. subsection 279.02(1) (Material benefit - trafficking),
- iv. subsection 279.02(2) (Material benefit - trafficking of person under 18 years),
- v. subsection 279.03(1) (Withholding or destroying documents - trafficking),
- vi. subsection 279.03(2) (Withholding or destroying documents - trafficking of person under 18 years), or

b. Immigration and Refugee Protection Act.

- i. section 118 (Trafficking in persons).

20.4. Contractor's Conviction Abroad of Similar Offences. If the Contractor has, in the past three years, been convicted of an offence in a jurisdiction other than Canada that, in Canada's opinion, is similar to any of the offences identified in the immediately preceding clause entitled "Contractor's Conviction in Canada of Specified Offences", Canada may immediately terminate the Contract for default.

20.5. Determination of Similarity of Offences. For the purposes of determining whether a foreign offence is similar to a listed offence, Canada will take into account the following factors:

- a. in the case of a conviction, whether the court acted within its jurisdiction,
- b. whether the Contractor was afforded the right to appear during the court's proceedings or to submit to the court's jurisdiction,
- c. whether the court's decision was obtained by fraud, or
- d. whether the Contractor was entitled to present to the court every defence that the Contractor would have been entitled to present if the proceeding had been tried in Canada.

20.6. Representations from Contractor. If Canada intends to terminate the Contract under this section, Canada will so inform the Contractor and give the Contractor an opportunity to make written representations before making a final decision. Unless Canada establishes a different deadline, the Contractor must submit such written representations within 30 calendar days from receiving Canada's notice of concern.



21. Termination and Suspension.

21.1. Termination for Convenience.

- a. **Right to Terminate.** Canada may terminate the Contract for convenience in whole or in part by giving written notice to the Contractor. The termination for convenience will take effect immediately or at the time specified in the termination notice.
- b. **Effect of Termination.** Upon termination for convenience of the Contract
 - i. the Contractor must comply with the requirements of the termination notice; or
 - ii. if Canada terminates the Contract in part only, the Contractor must proceed to complete any part of the Work that is not part of the termination notice.
- c. **Payments.** Canada will pay the Contractor
 - i. according to the Basis of Payment, for any part of the Work delivered, inspected, and accepted whether completed before, or after the termination in accordance with the Contract;
 - ii. Costs incurred by the Contractor plus a fair and reasonable profit thereon as determined by Canada in accordance with profit provisions, for any part of the Work commenced, but not completed, before the date of the termination notice; and
 - iii. Costs incidental to the termination of the Work incurred by the Contractor but not including the cost of severance payments or damages to employees whose services are no longer required, except wages that the Contractor is obligated by statute to pay.
- d. **Maximum Payment.** The total of the amounts, which Canada may pay the Contractor under this section, together with any amounts paid, due or becoming due to the Contractor must not exceed the Contract Price. Canada may reduce the payment in respect of any part of the Work, if upon inspection, it does not meet the requirements of the Contract.
- e. **Acknowledgments.**
 - i. **Claims.** The Contractor will have no claim for damages, compensation, loss of profit, interest, allowance arising out of any termination notice given by Canada under this section except to the extent that this section expressly provides;
 - ii. **Anticipated Profits.** The Contractor agrees that it is not entitled to any anticipated profit on any part of the Contract terminated; and
 - iii. **Repayments.** The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.

21.2. Termination for Default.

- a. **Right to Terminate.** Canada may, by giving written notice to the Contractor, terminate the Contract or any part of the Contract if the Contractor
 - i. fails to perform any term of the Contract, or
 - ii. becomes bankrupt, makes an assignment for the benefit of creditors, or if a receiver is appointed under a debt instrument or a receiving order is made against the Contractor, or an order is made or a resolution passed for the winding-up of the Contractor.
- b. **Effect of Termination.**
 - i. For (a)(i) above, the termination will take effect immediately or at the expiration of a cure period specified in the notice, if the Contractor has not cured the default to the satisfaction of the Contracting Authority within that cure period.
 - ii. For (a)(ii) above, the termination will take effect immediately.
 - iii. **No Further Payment.** If Canada terminates the Contract for default, the Contractor will have no claim for further payment except as provided in this section;



- iv. Payment of Outstanding Amounts.** The Contractor must immediately pay Canada for all losses and damages suffered by Canada because of the default or occurrence upon which the notice was based, including any increase in the cost incurred by Canada in procuring the Work from another source;
- v. Refund of Advance Payments.** The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.
- vi. Assessment under the Vendor Performance Corrective Measure Policy.** In the event of a full or partial termination for default, Canada will trigger a mandatory assessment of the Contractor's performance under the Vendor Performance Corrective Measure (VPCM) Policy.

21.3. Suspension of the Work. The Contracting Authority may at any time, by written notice, order the Contractor to suspend or stop the Work or part of the Work under the Contract. The Contractor must immediately comply with any such order in a way that minimizes the cost of doing so.

22. Remedies and Liabilities.

22.1. Remedies.

- a. Exclusive Provision.** The Parties agree that no limitation of liability or indemnity provision applies to the Contract unless it is specifically incorporated in full text.
- b. Contractor Liability.** The Contractor is liable for any damage caused by the Contractor, its employees, subcontractors, or agents to Canada or any third party.
- c. Canada Liability.** Canada is liable for any damage caused by Canada, its employees, or agents to the Contractor or any third party.
- d. Damages.** Damage includes any injury to persons (including injury resulting in death) or loss of or damage to property (including real property) caused as a result of or during the performance of the Contract.

23. General Provisions.

23.1. Status of Contractor. The Contractor is an independent contractor engaged by Canada to perform the Work. The Contract does not create a partnership, a joint venture or an agency between Canada and the other Party or Parties. The Contractor must not represent itself as an agent or representative of Canada to anyone. Neither the Contractor nor any of its personnel are an employee or agent of Canada. The Contractor is responsible for all deductions and remittances required by law in relation to its employees.

23.2. Entire Agreement. The Contract and the offer document are the entire agreement between the Parties and supersedes all previous negotiations, communications and agreements.

23.3. Amendment.

- a.** Amendments to the Contract must be in writing and signed by the Parties.
- b.** While the Contractor may discuss any proposed modifications to the Work with other representatives of Canada, Canada will not be responsible for the cost of any modification unless it has been incorporated into the Contract in writing and signed by the Parties.

23.4. Counterparts. The Parties may execute the Contract in several counterparts, each of which is an original and all of which constitute one single agreement between the Parties.



23.5. Assignment.

- a. The Contractor may only assign this agreement if
 - i. Canada agrees to the assignment in writing; and
 - ii. the Contractor remains responsible for the assignee's performance.
- b. The assignment will be effective upon execution of an assignment agreement signed by the Parties and the assignee.

23.6. Dispute Resolution.

- a. **Open Communication Between Parties.** The Parties agree to maintain open and honest communication about the Work during and after the period of the Contract.
- b. **Parties' Cooperation.** The Parties agree to consult and co-operate with each other to further the objectives of the Contract. They will promptly notify each other of, and attempt to resolve, any problems or differences that may arise.
- c. **Alternative Dispute Resolution.** If the Parties cannot resolve a dispute through consultation and cooperation, they will consult a neutral third party that offers alternative dispute resolution services.
- d. **Dispute Resolution Options.** Parties can find alternative dispute resolution options on Canada's CanadaBuys website under the heading "[Dispute Resolution](#)".

23.7. Powers of Canada. All rights, remedies, powers and discretions granted or acquired by Canada under the Contract or by law are cumulative, not exclusive.

23.8. Time of the Essence. It is essential that the Contractor deliver or perform the Work within or at the time stated in the Contract.

23.9. Excusable Delay.

- a. **Definition of Excusable Delay.** A delay in the performance by the Contractor or Canada of any obligation under the Contract that is caused by an event that
 - i. is beyond the reasonable control of the party,
 - ii. could not reasonably have been foreseen,
 - iii. could not reasonably have been prevented by means reasonably available to the party, and
 - iv. occurred without the fault or neglect of the party, is an "Excusable Delay" if the party advises the other party's Contracting Authority or Contractor's Representative of the occurrence of the delay or of the likelihood of the delay as soon as the party becomes aware of it. The party must also advise the other, within 15 Business Days, of all the circumstances relating to the delay and provide to the Contracting Authority or Contractor's Representative for approval a clear Workaround plan explaining in detail the steps that the party proposes to take in order to minimize the impact of the event causing the delay.
- b. **Postponement of Delivery.** Either party will postpone for a reasonable time any delivery date or another date directly affected by an Excusable Delay. Any postponement will not exceed the duration of the Excusable Delay.
- c. **Right to Terminate.** However, if an Excusable Delay has continued for 30 days or more, the party may terminate the Contract on written notice to the other party. In such a case, the Parties agree that neither will make any claim against the other for damages, costs, expected profits or any other loss arising out of the termination or the event that contributed to the Excusable Delay. The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.



- d. Liability for Costs Incurred.** Unless Canada has caused the delay by failing to meet an obligation under the Contract, Canada will not be responsible for any costs incurred by the Contractor or any of its subcontractors or agents because of an Excusable Delay.



Annex Standing Offer Solicitation Definitions

In this solicitation, unless the context otherwise requires, the following terms have the following meanings.

"Applicable Taxes" means the Goods and Services Tax (GST), the Harmonized Sales Tax (HST), and any provincial tax, by law, payable by Canada such as, the Quebec Sales Tax (QST) as of April 1, 2013;

"Applicable Trading Partner" means a country or customs territory other than Canada that is listed, pursuant to the [schedule](#) to the Canadian International Trade Tribunal Procurement Inquiry Regulations, as a party to any of the trade agreements applicable to this solicitation;

"Articles of Agreement" means the clauses and conditions incorporated in full text to form the body of the Contract; it does not include the annexes, the Contractor's offer or any other document;

"Call-up" means an order issued by an Identified User duly authorized to issue a call-up against a particular standing offer. Issuance of a call-up to the Offeror constitutes acceptance of its offer and results in the creation of a contract between His Majesty the King in right of Canada and the Offeror for the goods, services or both described in the Call-up;

"Canada", "Crown", "His Majesty" or "the Government" means His Majesty the King in right of Canada as represented by the Minister of Public Works and Government Services and any other person duly authorized to act on behalf of that minister or, if applicable, an appropriate minister to whom the Minister of Public Works and Government Services has delegated his or her powers, duties or functions and any other person duly authorized to act on behalf of that minister;

"Canadian Good" means a good that is wholly manufactured or originated in Canada. Canada may also consider a product that contains imported components to be a Canadian Good for the purpose of the Canadian Content Policy when it has undergone sufficient change in Canada in a manner that satisfies the definition specified under the [Canada-United States-Mexico Agreement \(CUSMA\)](#) Rules of Origin. For the purposes of this determination, the reference in the CUSMA Rules of Origin to "territory of one or more of the Parties" is replaced with "Canada". For more information on how to determine if a good is Canadian, consult the Buyer's Portal under the [Canadian Content Policy - Rules of origin determination](#) section, Example 1.

"Canadian Supplier" means a supplier that has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where each member of the joint venture has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours;

"Canadian Service" means a service provided by an individual based in Canada. If a requirement consists of only one service provided by two or more individuals, Canada will consider the service to be a Canadian Service if a minimum of 80 percent of the total offer price for the service is provided by individuals based in Canada.

"Variety of Goods" means that if a requirement consists of more than one good, Canada will apply one of the following methods:

- a. Aggregate evaluation: No less than 80 percent of the total offer price must consist of Canadian Goods, or
- b. Item-by-item evaluation: In some cases, Canada may conduct the offer evaluation on an item-by-item basis and award contracts to more than one Offeror. In such a case, Canada will ask the Offeror to identify separately each item that meets the definition of Canadian Goods.



"Variety of Services" means that if a requirement consists of more than one service, a minimum of 80 percent of the total offer price must be provided by individuals based in Canada.

"Mix of Goods and Services" means that if a requirement consists of a mix of goods and services, no less than 80 percent of the total offer price must consist of Canadian Goods and Canadian Services.

For more information on how to determine the Canadian Content for a mix of goods, a mix of services or a mix of goods and services, consult the Buyer's Portal under the [Canadian Content Policy – Rules of origin determination](#) section, Example 2.

"Other Canadian Goods and Services" means Canada may consider textiles to be Canadian Goods according to a modified rule of origin, copies of which are available from the Clothing and Textiles Division, Commercial and Consumer Products Directorate.

"Client" means the department or agency for which the Work is performed;

"Contract" means the Articles of Agreement, these general conditions, any supplemental general conditions, annexes and any other document specified or referred to as forming part of the Contract, all as amended by agreement of the Parties from time to time;

"Contracting Authority" means the person designated by that title in the Contract, or by notice to the Contractor, to act as Canada's representative to manage the Contract;

"Contractor" means the person, entity or entities named in the Contract to supply goods, services or both to Canada;

"Contract Price" means the amount stated in the Contract to be payable to the Contractor for the Work, exclusive of Applicable Taxes;

"Cost" means cost determined according to Contract Cost Principles 1031-2 as revised to the date of the solicitation of offers or, if there was no solicitation of offers, the date of the Contract;

"Date of payment" means the date of the negotiable instrument drawn by the Receiver General for Canada to pay any amount under the Contract;

"Excluded Material" refers to packaging tape - environmentally preferable material alternatives for packaging tape are not widely available. As a result, packaging tape is excluded from the environmentally preferable packaging specifications until the market has progressed and studies become available to determine otherwise;

"Former Public Servant" is any former member of a department as defined in the [Financial Administration Act](#), R.S., 1985, c. F-11, a former member of the Canadian Armed Forces or a former member of the Royal Canadian Mounted Police. A former public servant may be:

- (a) an individual;
- (b) an individual who has incorporated;
- (c) a partnership made of former public servants; or
- (d) a sole proprietorship or entity where the affected individual has a controlling or major interest in the entity;

"General Conditions" means the general conditions that form part of the Contract;

"Government Property" means anything supplied to the Contractor by or on behalf of Canada for the purposes of performing the Contract and anything acquired by the Contractor in any manner in connection with the Work, the cost of which is paid by Canada under the Contract;

"Identified User" means a person or entity identified in the Standing Offer and authorized by the Standing Offer Authority to make call-ups against the Standing Offer;



"Joint Venture" means an association of two or more Parties who combine their money, property, knowledge, expertise or other resources in a single joint business enterprise, sometimes referred as a consortium, to offer together on a requirement;

"Lump Sum Payment" means the payment which has been made to facilitate the transition to retirement or to other employment as a result of the implementation of various programs to reduce the size of the Public Service. The lump sum payment period does not include the period of severance pay, which is measured in a like manner;

"Net-Zero Challenge or Equivalent" means the following accepted initiatives are deemed equivalents to the Net-Zero Challenge, 'United Nations Race to Zero' or 'Science-Based Targets Initiative (SBTI)' or 'Carbon Disclosure Project (CDP)' or 'International Organization for Standardization (ISO) – ISO 14064-1:2018'

"Offeror" means the person or entity (or, in the case of a Joint Venture, the persons or entities) submitting an offer. It does not include the parent, subsidiaries or other affiliates of the Offeror, or its subcontractors;

"Packaging" means product to be used for the containment, protection, handling, delivery, storage, transport and presentation of goods. (Source: [ISO 21067-1:2016, Clause 2.1.1](#));

"Party" means Canada, the Contractor, or any other signatory to the Contract and **"Parties"** means all of them;

"Pension" means a pension or annual allowance paid under the [Public Service Superannuation Act](#) (PSSA), R.S., 1985, c. P-36, and any increases paid pursuant to the [Supplementary Retirement Benefits Act](#), R.S., 1985, c. S-24 as it affects the PSSA. It does not include pensions payable pursuant to the [Canadian Forces Superannuation Act](#), R.S., 1985, c. C-17, the [Defence Services Pension Continuation Act](#), 1970, c. D-3, the [Royal Canadian Mounted Police Pension Continuation Act](#), 1970, c. R-10, and the [Royal Canadian Mounted Police Superannuation Act](#), R.S., 1985, c. R-11, the [Members of Parliament Retiring Allowances Act](#), R.S. 1985, c. M-5, and that portion of pension payable to the [Canada Pension Plan Act](#), R.S., 1985, c. C-8;

"Recyclable" means capable of being diverted from the waste stream through available processes and programs and can be collected, sorted, processed and returned to use in the form of raw materials or products. (Source: [CAN/CSA-ISO 14021, Clause 7.7.1](#));

"Recyclable packaging" means packaging or a packaging component is recyclable if its successful post consumer collection, sorting, and recycling is proven to work in practice and at scale. This means that there is an existing (collection, sorting and recycling) system in place that actually recycles the packaging and that covers significant and relevant geographical areas as measured by population size. (Source: adapted from the [New Plastics Economy Global Commitment](#));

"Returnable (to the Contractor)" means there is an existing and functional program in place for the packaging to be returned to the Contractor to reuse, refill, or recycle at no additional cost to the client;

"Reusable (by Canada)" means designed to be used multiple times for the same purpose without losing its original functionality, physical capability or quality. A characteristic of a product or packaging that has been conceived and designed to accomplish within its life cycle a certain number of trips, rotations or uses for the same purpose for which it was conceived. (Source: [CAN/CSA-ISO 14021, Clause 7.12.1.1](#));

"Security Deposit" means (a) a bill of exchange that is payable to the Receiver General for Canada and certified by an approved financial institution or drawn by an approved financial institution on itself; or (b) a government guaranteed bond; or (c) an irrevocable standby letter of credit, or (d) such other



security as may be considered appropriate by the Contracting Authority and approved by Treasury Board;

"Approved Financial Institution" means (a) any corporation or institution that is a member of the Canadian Payments Association (Payments Canada); (b) a corporation that accepts deposits that are insured by the Canada Deposit Insurance Corporation or the Régie de l'assurance-dépôts du Québec to the maximum permitted by law; (c) a credit union as defined in paragraph 137(6) of the [Income Tax Act](#); (d) a corporation that accepts deposits from the public, if repayment of the deposits is guaranteed by a Canadian province or territory; or (e) the Canada Post Corporation;

"Government-guaranteed Bond" means a bond of the Government of Canada or a bond unconditionally guaranteed as to principal and interest by the Government of Canada that is: (a) payable to bearer; (b) accompanied by a duly executed instrument of transfer of the bond to the Receiver General for Canada in accordance with the [Domestic Bonds of Canada Regulations](#); (c) registered in the name of the Receiver General for Canada;

"Irrevocable Standby Letter of Credit" (a) means any arrangement, however named or described, whereby a financial institution (the "Issuer"), acting at the request and on the instructions of a customer (the "Applicant"), or on its behalf, (i) will make a payment to or to the order of Canada, as the beneficiary; (ii) will accept and pay bills of exchange drawn by Canada; (iii) authorizes another financial institution to effect such payment, or accept and pay such bills of exchange; or (iv) authorizes another financial institution to negotiate, against written demand(s) for payment, provided that the conditions of the letter of credit are complied with; (b) must state the face amount which may be drawn against it; (c) must state its expiry date; (d) must provide for sight payment to the Receiver General for Canada by way of the financial institution's draft against presentation of a written demand for payment signed by the authorized departmental representative identified in the letter of credit by his or her office; (e) must provide that more than one written demand for payment may be presented subject to the sum of those demands not exceeding the face amount of the letter of credit; (f) must provide that it is subject to the International Chamber of Commerce (ICC) Uniform Customs and Practice (UCP) for Documentary Credits, 2007 Revision, ICC Publication No. 600. Pursuant to the ICC UCP, a credit is irrevocable even if there is no indication to that effect; and (g) must be issued (Issuer) or confirmed (Confirmer), in either official language, by a financial institution that is a member of the Canadian Payments Association (Payments Canada) and is on the letterhead of the Issuer or Confirmer. The format is left to the discretion of the Issuer or Confirmer;

"Specialized packaging" means packaging can be considered "specialized" if the intended use of the packaging requires technical performance specifications with no environmentally preferable alternatives. For example, when transporting hazardous materials, if there is a need for a specific density of materials, or if they must be temperature controlled;

"Specifications" means the description of the essential, functional or technical requirements of the Work in the Contract, including the procedures for determining whether the requirements have been met;

"Standing Offer" means the written offer from the Offeror, the clauses and conditions set out in full text or incorporated by reference from the Standard Acquisition Clauses and Conditions Manual, these general conditions, annexes and any other document specified or referred to as forming part of the Standing Offer;



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"Standing Offer Authority" means the person designated as such in the Standing Offer, or by notice to the Offeror, to act as the representative of Canada in the management of the Standing Offer. The Standing Offer Authority will issue a document called "Standing Offer and Call-up Authority" to authorize Identified Users to make call-ups against the Standing Offer and to notify the Offeror that authority to make call-ups against the Standing Offer has been given to Identified Users;

"Supplier of an Applicable Trading Partner" means a supplier that has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where at least one member of the joint venture has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours, and all other members of the joint venture either have a place of business in an Applicable Trading Partner where they conduct activities on a permanent basis that is clearly identified by name and accessible during normal business hours or are a Canadian Supplier;

"Supplier of a Non-Trading Partner" means any supplier that is not a Canadian Supplier or a Supplier of an Applicable Trading Partner; or, a joint venture where any member of the joint venture is not a Canadian Supplier or a Supplier of an Applicable Trading Partner;

"Total Estimated Cost", "Revised Estimated Cost", "Increase (Decrease)" means an amount used for internal administrative purposes only that comprises the Contract Price, or the revised Contract Price, or the amount that would increase or decrease the Contract Price and the Applicable Taxes as evaluated by the Contracting Authority, and does not constitute tax advice on the part of Canada;

"Work" means all the activities, services, goods, equipment, matters and things required to be done, delivered or performed by the Contractor under the Contract.



Annex Standing Offer and Resulting Contract Definitions

In this Standing Offer Contract, unless the context otherwise requires, the following terms shall have the following meanings:

"Applicable Taxes" means the Goods and Services Tax (GST), the Harmonized Sales Tax (HST), and any provincial tax, by law, payable by Canada such as, the Quebec Sales Tax (QST) as of April 1, 2013;

"Applicable Trading Partner" means a country or customs territory other than Canada that is listed, pursuant to the [schedule](#) to the Canadian International Trade Tribunal Procurement Inquiry Regulations, as a party to any of the trade agreements applicable to this solicitation;

"Articles of Agreement" means the clauses and conditions incorporated in full text to form the body of the Contract; it does not include the annexes, the Contractor's offer or any other document;

"Call-up" means an order issued by an Identified User duly authorized to issue a call-up against a particular standing offer. Issuance of a call-up to the Offeror constitutes acceptance of its offer and results in the creation of a contract between His Majesty the King in right of Canada and the Offeror for the goods, services or both described in the Call-up;

"Canada", "Crown", "His Majesty" or "the Government" means His Majesty the King in right of Canada as represented by the Minister of Public Works and Government Services and any other person duly authorized to act on behalf of that minister or, if applicable, an appropriate minister to whom the Minister of Public Works and Government Services has delegated his or her powers, duties or functions and any other person duly authorized to act on behalf of that minister;

"Canadian Good" means a good that is wholly manufactured or originated in Canada. Canada may also consider a product that contains imported components to be a Canadian Good for the purpose of the Canadian Content Policy when it has undergone sufficient change in Canada in a manner that satisfies the definition specified under the [Canada-United States-Mexico Agreement \(CUSMA\)](#) Rules of Origin. For the purposes of this determination, the reference in the CUSMA Rules of Origin to "territory of one or more of the Parties" is replaced with "Canada". For more information on how to determine if a good is Canadian, consult the Buyer's Portal under the [Canadian Content Policy - Rules of origin determination](#) section, Example 1.

"Canadian Supplier" means a supplier that has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where each member of the joint venture has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours;

"Canadian Service" means a service provided by an individual based in Canada. If a requirement consists of only one service provided by two or more individuals, Canada will consider the service to be a Canadian Service if a minimum of 80 percent of the total offer price for the service is provided by individuals based in Canada.

"Variety of Goods" means that if a requirement consists of more than one good, Canada will apply one of the following methods:

- a. Aggregate evaluation: No less than 80 percent of the total offer price must consist of Canadian Goods, or
- b. Item-by-item evaluation: In some cases, Canada may conduct the offer evaluation on an item-by-item basis and award contracts to more than one Offeror. In such a case, Canada will ask the Offeror to identify separately each item that meets the definition of Canadian Goods.



"Variety of Services" means that if a requirement consists of more than one service, a minimum of 80 percent of the total offer price must be provided by individuals based in Canada.

"Mix of Goods and Services" means that if a requirement consists of a mix of goods and services, no less than 80 percent of the total offer price must consist of Canadian Goods and Canadian Services.

For more information on how to determine the Canadian Content for a mix of goods, a mix of services or a mix of goods and services, consult the Buyer's Portal under the [Canadian Content Policy – Rules of origin determination](#) section, Example 2.

"Other Canadian Goods and Services" means Canada may consider textiles to be Canadian Goods according to a modified rule of origin, copies of which are available from the Clothing and Textiles Division, Commercial and Consumer Products Directorate.

"Contract" or **"Call-up Contract"** means the contract that results from the issued Call-up that accept the Offeror's Offer including these Articles of Agreement, annexes and any other document specified or referred to as forming part of the Contract, all as amended by agreement of the Parties from time to time;

"Contracting Authority" means the person designated by that title in the Contract, or by notice to the Contractor, to act as Canada's representative to manage the Contract;

"Contractor" means the Offeror, the person, entity or entities named in the Call-up Contract to supply goods, services or both to Canada;

"Contract Price" means the amount stated in the Contract to be payable to the Contractor for the Work, exclusive of Applicable Taxes;

"Cost" means cost determined according to Contract Cost Principles 1031-2 as revised to the date of the bid solicitation or, if there was no bid solicitation, the date of the Contract;

"Excluded Material" refers to packaging tape - environmentally preferable material alternatives for packaging tape are not widely available. As a result, packaging tape is excluded from the environmentally preferable packaging specifications until the market has progressed and studies become available to determine otherwise;

"Government Property" means anything supplied to the Contractor by or on behalf of Canada for the purposes of performing the Contract and anything acquired by the Contractor in any manner in connection with the Work, the cost of which is paid by Canada under the Contract;

"Identified User" means a person or entity identified in the Standing Offer and authorized by the Standing Offer Authority to make call-ups against the Standing Offer;

"Net-Zero Challenge or Equivalent" means the following accepted initiatives are deemed equivalents to the Net-Zero Challenge, 'United Nations Race to Zero' or 'Science-Based Targets Initiative (SBTI)' or 'Carbon Disclosure Project (CDP)' or 'International Organization for Standardization (ISO) – ISO 14064-1:2018'

"Offeror" means the person or entity whose name appears on the signature page of the Standing Offer and who offers to provide goods, services or both to Canada under the Standing Offer;

"Packaging" means product to be used for the containment, protection, handling, delivery, storage, transport and presentation of goods. (Source: [ISO 21067-1:2016, Clause 2.1.1](#));

"Party" means Canada, the Contractor, or any other signatory to the Contract and **"Parties"** means all of them;

"Personal Information" means information about an individual, including the types of information specifically described in the [Privacy Act](#), R.S. 1985, c. P-21;



"Record" means any hardcopy document or any data in a machine-readable format containing Personal Information;

"Recyclable" means capable of being diverted from the waste stream through available processes and programs and can be collected, sorted, processed and returned to use in the form of raw materials or products. (Source: [CAN/CSA-ISO 14021, Clause 7.7.1](#));

"Recyclable packaging" means packaging or a packaging component is recyclable if its successful post consumer collection, sorting, and recycling is proven to work in practice and at scale. This means that there is an existing (collection, sorting and recycling) system in place that actually recycles the packaging and that covers significant and relevant geographical areas as measured by population size. (Source: adapted from the [New Plastics Economy Global Commitment](#));

"Returnable (to the Contractor)" means there is an existing and functional program in place for the packaging to be returned to the Contractor to reuse, refill, or recycle at no additional cost to the client;

"Reusable (by Canada)" means designed to be used multiple times for the same purpose without losing its original functionality, physical capability or quality. A characteristic of a product or packaging that has been conceived and designed to accomplish within its life cycle a certain number of trips, rotations or uses for the same purpose for which it was conceived. (Source: [CAN/CSA-ISO 14021, Clause 7.12.1.1](#));

"Security Deposit" means (a) a bill of exchange that is payable to the Receiver General for Canada and certified by an approved financial institution or drawn by an approved financial institution on itself; or (b) a government guaranteed bond; or (c) an irrevocable standby letter of credit, or (d) such other security as may be considered appropriate by the Contracting Authority and approved by Treasury Board;

"Approved Financial Institution" means (a) any corporation or institution that is a member of the Canadian Payments Association (Payments Canada); (b) a corporation that accepts deposits that are insured by the Canada Deposit Insurance Corporation or the Régie de l'assurance-dépôts du Québec to the maximum permitted by law; (c) a credit union as defined in paragraph 137(6) of the [Income Tax Act](#); (d) a corporation that accepts deposits from the public, if repayment of the deposits is guaranteed by a Canadian province or territory; or (e) the Canada Post Corporation;

"Government-guaranteed Bond" means a bond of the Government of Canada or a bond unconditionally guaranteed as to principal and interest by the Government of Canada that is: (a) payable to bearer; (b) accompanied by a duly executed instrument of transfer of the bond to the Receiver General for Canada in accordance with the [Domestic Bonds of Canada Regulations](#); (c) registered in the name of the Receiver General for Canada;

"Irrevocable Standby Letter of Credit" (a) means any arrangement, however named or described, whereby a financial institution (the "Issuer"), acting at the request and on the instructions of a customer (the "Applicant"), or on its behalf, (i) will make a payment to or to the order of Canada, as the beneficiary; (ii) will accept and pay bills of exchange drawn by Canada; (iii) authorizes another financial institution to effect such payment, or accept and pay such bills of exchange; or (iv) authorizes another financial institution to negotiate, against written demand(s) for payment, provided that the conditions of the letter of credit are complied with; (b) must state the face amount which may be drawn against it; (c) must state its expiry date; (d) must provide for sight payment to the Receiver General for Canada by way of the financial institution's draft against presentation of a written demand for payment signed by the authorized departmental representative identified in the letter of credit by his or her office; (e) must provide that more than one written demand for payment may be presented subject to the sum of those



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demands not exceeding the face amount of the letter of credit; (f) must provide that it is subject to the International Chamber of Commerce (ICC) Uniform Customs and Practice (UCP) for Documentary Credits, 2007 Revision, ICC Publication No. 600. Pursuant to the ICC UCP, a credit is irrevocable even if there is no indication to that effect; and (g) must be issued (Issuer) or confirmed (Confirmer), in either official language, by a financial institution that is a member of the Canadian Payments Association (Payments Canada) and is on the letterhead of the Issuer or Confirmer. The format is left to the discretion of the Issuer or Confirmer;

"Specialized packaging" means packaging can be considered "specialized" if the intended use of the packaging requires technical performance specifications with no environmentally preferable alternatives. For example, when transporting hazardous materials, if there is a need for a specific density of materials, or if they must be temperature controlled.

"Specifications" means the description of the essential, functional or technical requirements of the Work in the Contract, including the procedures for determining whether the requirements have been met;

"Standing Offer" means the written offer from the Offeror, the clauses and conditions set out in full text or incorporated by reference from the Standard Acquisition Clauses and Conditions Manual, these general conditions, annexes and any other document specified or referred to as forming part of the Standing Offer;

"Standing Offer Authority" means the person designated as such in the Standing Offer, or by notice to the Offeror, to act as the representative of Canada in the management of the Standing Offer. The Standing Offer Authority will issue a document called "Standing Offer and Call-up Authority" to authorize Identified Users to make call-ups against the Standing Offer and to notify the Offeror that authority to make call-ups against the Standing Offer has been given to Identified Users;

"Supplier of an Applicable Trading Partner" means a supplier that has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where at least one member of the joint venture has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours, and all other members of the joint venture either have a place of business in an Applicable Trading Partner where they conduct activities on a permanent basis that is clearly identified by name and accessible during normal business hours or are a Canadian Supplier;

"Supplier of a Non-Trading Partner" means any supplier that is not a Canadian Supplier or a Supplier of an Applicable Trading Partner; or, a joint venture where any member of the joint venture is not a Canadian Supplier or a Supplier of an Applicable Trading Partner;

"Total Estimated Cost", "Revised Estimated Cost", "Increase (Decrease)" means an amount used for internal administrative purposes only that comprises the Contract Price, or the revised Contract Price, or the amount that would increase or decrease the Contract Price and the Applicable Taxes as evaluated by the Contracting Authority, and does not constitute tax advice on the part of Canada;

"Work" means all the activities, services, goods, equipment, matters and things required to be done, delivered or performed by the Contractor under the Contract.

Definitions – IP Rights in Foreground Information

"Background Information" means all Intellectual Property that is

(a) not Foreground Information that is incorporated into the Work or necessary for the performance of



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the Work (including in the case of Software, the source code) or necessary for the Contractor to perform the Work, and

(b) proprietary to or the confidential information of the Contractor, its subcontractors, or any other third party.

"Firmware" means computer programs that are stored in integrated circuits, read-only memory or other similar devices within the hardware or other equipment.

"Foreground Information" means all Intellectual Property first conceived, developed, produced, or reduced to practice as part of the Work.

"Intellectual Property" means any information or knowledge of an industrial, scientific, technical, commercial, literary, dramatic, artistic or otherwise creative nature relating to the Work, whether oral or recorded in any form or medium and whether or not subject to copyright; this includes but is not limited to any inventions, designs, methods, processes, techniques, know-how, show-how, models, prototypes, patterns, samples, schematics, experimental or test data, reports, drawings, plans, specifications, photographs, manuals and any other documents, Software, and Firmware.

"Intellectual Property Right" means any intellectual property right recognized by law, including any intellectual property right protected by legislation such as patents, copyright, industrial design, integrated circuit topography, and plant breeders' rights, or subject to protection under the law as trade secrets and confidential information.

"Software" means any computer program whether in source or object code (including Firmware), any computer program documentation recorded in any form or upon any medium, and any computer database (including any modification).



Annex Offer Submission Form

1. Identification of Joint Venture Parties For a proposal submitted on behalf of a Joint Venture, provide the information or indicate "N/A" if not applicable.	
Name(s) of Joint Venture Members	
PBN(s) of Joint Venture Members	
Authorized Representative of the Joint Venture	
Name	
Title	
Telephone Number	
Email	
2. Applicable Laws Offerors may substitute the applicable laws of another Canadian province or territory by deleting the name of the specified jurisdiction and inserting the name of the province or territory of their choice. If the Offeror has not made a change, the Offeror acknowledges its acceptance of the jurisdiction specified in this offer solicitation.	
Applicable Laws	
3. Electronic Payments The Offeror accepts the following payments (please check all that apply):	
☐ VISA Acquisition Card ☐ MasterCard Acquisition Card ☐ Direct Deposit (Domestic and International) ☐ Electronic Data Interchange (EDI) ☐ Wire Transfer (International Only) ☐ Large Value Transfer System (LVTS) (Over \$25 million dollars)	
4. Language preferences The Offeror wishes that communications and documents be made in:	
☐ English ☐ French	



Annex Offeror Declaration Form

Offeror's Full Legal Name	
Once you have read and understood each statement, please respond by checking () for each certification below. The Offeror certifies to Canada that its responses below are complete and truthful.	
Acceptance of Clauses and Conditions	
() Offerors who submit an offer agree to be bound by the instructions, clauses and conditions of the offer solicitation and accept the clauses and conditions of the resulting contract.	
Declaration - Reciprocal Procurement	
This solicitation of offers is only open to Canadian Suppliers { Insert, if applicable: and to Suppliers of an Applicable Trading Partner } as defined in the Annex Solicitation of Offer Definitions. The Offeror certifies that: () it is a Canadian Supplier, as defined in Annex Solicitation of Offers Definitions. () the address provided below is the Offeror's place of business; or in the case of a joint venture, the address(es) provided below are the place of business for each member of the joint venture. Insert Address(es) of Place of Business _____ _____ _____ _____ _____ { Insert, if applicable: or The Offeror certifies that: () it is a Supplier of an Applicable Trading Partner, as defined in Annex Solicitation of Offers Definitions. () the address provided below is the Offeror's place of business, or the case of a joint venture, the address(es) provided below are the place of business of each member of the joint venture. Insert Address(es) of Places of Business _____ _____ _____ _____ _____ } For the purpose of determining the location of an offeror's place of business for eligibility under the Policy on Reciprocal Procurement, Canada will only use the address(es) provided in this declaration.	
Federal Contractors Program for Employment Equity (FCP)	
Eligibility to submit an offer Federal Contractors	() The Offeror, and any of its members if it is a joint venture, is not named on the Federal Contractors Program (FCP) for Employment Equity "FCP Limited Eligibility to Bid" list. <i>Canada may declare an offer non-compliant if the Offeror, or any of its</i>



Program for Employment Equity	<i>members if the Offeror is a joint venture, appears on the "FCP Limited Eligibility to Bid" list at the time of contract award.</i>
Employment Equity The Federal Contractors Program (FCP) for employment equity is intended to address employment disadvantages for the four designated groups: women, Aboriginal peoples, persons with disabilities and members of visible minorities. Its goal is to achieve equality so that no person is denied employment opportunities for reasons unrelated to ability.	A. Check only one of the following: ☐ The Offeror certifies that it has no work force in Canada. ☐ The Offeror certifies that it is a public sector employer. ☐ The Offeror certifies that it is a federally regulated employer, subject to the <i>Employment Equity Act</i>. ☐ The Offeror certifies that it has a combined work force in Canada of less than 100 permanent employees (including full-time and part-time). ☐ The Offeror certifies that it has a combined workforce in Canada of 100 or more employees, and the Offeror already has a valid and current Agreement to Implement Employment Equity (AIEE) in place with ESDC - Labour. ☐ The Offeror certifies that it has a combined workforce in Canada of 100 or more employees and the Offeror has duly submitted the Agreement to Implement Employment Equity (LAB1215) to ESDC - Labour. B. Check only one of the following: ☐ The Offeror is not a Joint Venture. ☐ The Offeror is a Joint Venture, and each member has submitted a completed Federal Contractors Program for Employment Equity - Certification.
Accuracy and Integrity	
Accuracy of information	☐ All the information that the Offeror submits with its offer is true, accurate, and complete as of the date indicated below.
Code of Conduct for Procurement	☐ The Offeror complies with Canada's Code of Conduct for Procurement .
Offeror Resources	
The Offeror, if awarded a resulting contract, will provide the resources proposed in its offer	
Named individuals	☐ The Offeror certifies that every individual proposed in the offer will be available to perform the Work as required by and at the time specified in this solicitation of offers.
<i>If for reasons beyond its control, the Offeror is unable to provide the services of an individual named in its offer, the Offeror may propose a substitute with similar qualifications and experience. Canada will, for these purposes, consider only the following reasons as being beyond the Offeror's control: death, sickness, maternity and parental leave, retirement, resignation, dismissal for cause, and termination of an agreement for default.</i> <i>The Offeror must advise Canada of the reason for the substitution and provide the substitute resource's name, qualifications, and experience. Canada will evaluate the substitution against the same requirements as the original resource.</i>	



Non-employees	() The Offeror certifies that it has the consent of every non-employee to perform the services proposed in the offer and to submit each non-employee's résumé to Canada.
<i>The Offeror must, upon Canada's request, provide a written confirmation, signed by the individual, of that permission and of the resource's availability.</i>	
Former Public Servant Contracts awarded to former public servants ("FPS") who receive a federal government pension or lump sum payment must bear the closest public scrutiny, and reflect fairness in the spending of public funds. To comply with Treasury Board policies and directives on contracts awarded to FPS, Offerors must provide the information required below before contract award. <i>Each Offeror acknowledges that the successful Offeror's status, with respect to being a former public servant who received a pension, will be reported on departmental websites as part of the published proactive disclosure reports in accordance with Contracting Policy Notice and the Guidelines on the Proactive Disclosure of Contracts.</i>	
Is the Offeror an FPS who receives a pension?	() Yes (If yes, please fill out Former Public Servant - Receipt of Pension section below) () No
Is the Offeror an FPS who received a lump sum payment under a Work Force Adjustment Directive?	() Yes (If yes, please fill out Former Public Servant - Receipt of Lump Sum Payment section below) () No
Form: Former Public Servant - Receipt of Pension If the Offeror is in receipt of a pension, the Offeror must provide the following information for each FPS in receipt of a pension.	
Name of former public servant	
Date of termination of employment or retirement from the Public Service	
Form: Former Public Servant - Receipt of Lump Sum Payment If the Offeror is a FPS who received a lump sum payment pursuant to the terms of the Work Force Adjustment Directive, please provide the following information.	
Name of former public servant	
Conditions of the lump sum payment incentive	



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Date of termination of employment	
Amount of lump-sum payment	
Rate of pay on which lump sum payment is based	
Period of lump-sum payment (start date, end date and number of weeks)	
Number and amount of other contracts subject to the restrictions of a workforce adjustment program	
Signatures	
Signature of representative authorized to sign on behalf of the Offeror	
Name:	
Title:	
Date:	



Annex Statement of Work

1.0 Introduction

1.1 Title

Regional Standing Offer for Environmental Services – Newfoundland and Labrador Region.

1.2 Introduction

The Regional Office of Environmental Coordination (ROEC) within the Real Property and Environmental Management (RPEM) division of the Department of Fisheries and Oceans (DFO) – Newfoundland Region, undertakes and manages environmental projects including environmental site assessments, site characterizations, risk assessments and remediation on property under the jurisdiction of DFO located in the Province of Newfoundland and Labrador. These projects are collectively called Environmental Services within the frame of this Statement of Work and involve the assessment, remediation and management of contaminants in soil, sediment, air, surface water, groundwater, and/or plant and animal tissues.

The ROEC – NL Region undertakes Environmental Services as part of DFO's Contaminated Sites Strategy and the Federal Contaminated Sites Action Plan (FCSAP), and to meet DFO's obligations under the Impact Assessment Act (IAA 2019) in the form of a Significant Environmental Effects Determination. This work is to deliver various steps of the [Federal Contaminated Sites Decision Making Framework](#) (Federal Contaminated Sites Action Plan (FCSAP) decision-making framework - [En14-89-2016-eng.pdf \(publications.gc.ca\)](#)), including environmental site assessments, classification, risk assessments and remediation. In addition, the environmental services include Archeological Risk Impact Assessments (ARIA), biological surveys, and the preparation of required documents as per the Impact Assessment Act (IAA 2019).

DFO's approach to managing contaminated sites includes assessment, followed by remediation and/or risk management, as warranted.

DFO operates over 1200 properties in the NL Region; these properties include but are not limited to: small craft harbors, fishways, remote cabins and other DFO operations related facilities.

1.3 General Objectives

The objective of the Standing Offer (SO) is to provide technical and project management services related to contaminated sites on an "as and when requested" basis. This includes, but is not limited to, environmental site assessments, risk assessment, risk management, remediation, long-term monitoring and requirements for environmental site closure of land-based and aquatic contaminated sites. Successful proponents will have significant regulatory experience within the federal framework, as well as the Atlantic RBCA (Risk Based Corrective Action) framework, and experience working on terrestrial and aquatic sites.

2.0 Requirements

2.1 Basic Services

Call-ups may request the completion of any or all of the services described in this section:

- Environmental Site Assessment in accordance with standard Z768-F01 (R2022) (Phase I Environmental Site Assessment) ([Z768-01 \(R2022\) | Product | CSA Group](#)) and CAN/CSA-Z769-00 (R2023) (Phase II Environmental Site Assessment) ([CAN/CSA-Z769-00 \(R2023\) | Product | CSA Group](#)) or any other requirement indicated in a specific call-up.
- Soil, groundwater, surface water and sediment sampling and/or assessment.
- Human Health and Ecological Risk Assessments.
- Designated Substance and Hazardous Materials Survey.



- Remedial Options Evaluation and/or Remedial Action Plan (including evaluation/estimate of liability).
- Risk Communication, and Development of Remediation/Risk Management Plans for DFO.
- Climate Change Vulnerability Assessments and/or Considerations.
- Biological and habitat inventory and/or assessment, including species at risk and creation of site specific or generic wildlife and habitat management plans or standard operating procedures;
- Environmental remediation specification development and project oversight.
- Environmental impact assessment pursuant to the Impact Assessment Act.
- Completing provincial requirements in relation to offsite contamination.
- Completing an environmental record of site condition document, as per provincial requirements for the divestiture or disposal of a federal property.
- Archaeological Resource Impact Assessment.
- Peer review of environmental reports from other consulting firms.
- Underground infrastructure surveys.
- Confirmatory and Long-Term Monitoring.
- Completion of various federal government tools, such as:
 - Site classification using the National Classification System for Contaminated Sites (NCSCS) or Aquatic Sites Classification System (ASCS) ([Supplemental FCSAP Guidance document \(canada.ca\)](https://www.canada.ca/en/environmental-protection/contaminated-sites/ncscs.html)).
 - DFO Class 3/N Screening tool,
 - Integrating Climate Change Adaptation Considerations into Federal Contaminated Sites Management (Appendix E) (https://publications.gc.ca/collections/collection_2022/ecccc/En14-487-2022-eng.pdf).
 - DFO Site Closure Tool.

2.1.1. Call ups may consist of the following tasks, as applicable:

1. Review of existing data and recommendations for additional data collection. A review of available data and reports from previous activities at the site will be undertaken. The background and historical review must include documentation of each source of information examined and databases and sources that were used to gather information. Detailed recommendations for additional data collection (sampling locations, analytical requirements, etc.) will be prepared for input to the proposed environmental site assessment program. Requirements of the Impact Assessment Act must be evaluated prior to remediation.
2. Site visit and data collection. A site visit will be conducted to ensure an understanding of physical site-specific conditions, archaeological resource impact assessment, remediation oversight, underground utilities surveys. This will be conducted in conjunction with the proposed environmental site assessment and remediation program. A safety plan must be provided to DFO for review prior to the site visit. The Offeror must not collect off-site samples unless specifically authorized by the Project Authority.
3. Lab analysis. For each call-up, the Offeror must develop a quality control and quality assurance program and have it validated and approved in writing by the Project Authority. The Offeror must respect the fundamental principles of sample conservation, storage and transport set out in the Guidance Manual for Environmental Site



Characterization in Support of Environmental and Human Health Risk Assessment, Volumes 1, 2, 3 and 4 (CCME 2016).

Analytical testing will be required to determine the concentrations of contaminants of concern in various media. The laboratories selected for this purpose must have the appropriate certification for the testing (i.e. Canadian Association for Laboratory Accreditation (CALA) or the equivalent). The Contractor will clearly identify the test methods to be used in a Sampling and Analysis Plan.

4. Site Specific Risk Assessment (SSRA), which may include uplands and/or waterlot assessments of DFO properties. This work must be completed by the Contractor to evaluate potential human health and ecological risks related to contaminants found at the site. **Specific phases of the SSRA and environmental assessment include:**

1. Review of existing background information

The Contractor must review and have a thorough understanding of existing environmental reports and information. The referenced reports must be reviewed together with publicly available information pertaining to surficial geology and hydrogeology, land and water use. The Contractor must identify any critical gaps in existing data and identify any critical assumptions.

2. Development of Work Plan

The Contractor must consider and incorporate the recommendations from previous work as warranted, to design a sampling program to collect soil, sediment, groundwater, tissue, or biological specimens as required to support a SSRA or sediment assessment.

In addition to the sampling program, the Work Plan must include a health and safety plan, a Quality Assurance program, and details of logistics for sampling, processing, transport, and chain of custody.

3. Site Specific Risk Assessment

- a. Human Health Risk Assessment: The Contractor must conduct the human health component of the SSRA in accordance with the most up-to-date CCME and Health Canada guidance available at the time of study completion. Where any aspects of the risk assessment deviate from prescribed Health Canada guidance, detailed justification and supporting documentation must be provided in writing to the Project Authority. Specific phases of the Human Health Risk Assessment must include:

- Problem Formulation.
- Exposure assessment.
- Toxicity assessment.
- Risk characterization.
- Data gap and uncertainty analysis.
- Discussion and conclusions.
- Recommendations for future work and to meet objectives of this project.

- b. Ecological Risk Assessment: The Contractor must conduct the ecological component of the SSRA in accordance with guidance provided by CCME's



Framework for Ecological Risk Assessment & Federal Contaminated Sites Action Plan (FCSAP) Ecological Risk Assessment Guidance. Where any aspects of the risk assessment deviate from prescribed CCME guidance, detailed justification and supporting documentation must be provided in writing to the Project Authority.

The Contractor must provide an estimate of the degree of risk posed due to presence of Contaminants of Potential Concern (COPCs) to the Valued Ecosystem Components (VECs) present, or which must or should be present at a site, and an analysis of the uncertainties pertaining to the risk characterization. Field surveys, literature, and information contained in previous reports should be used to identify potential terrestrial, aquatic, and other ecological receptors. Specific phases of the Ecological Risk Assessment include:

- Problem Formulation.
 - Receptor Characterization (including protection thresholds for common species and species at risk).
 - Conceptual Site Model (CSM).
 - Exposure, Pathway, and Effects Assessment and Analysis.
 - Hazard Assessment.
 - Risk Characterization.
 - Discussion and conclusions.
 - Data gap and uncertainty analysis.
 - Recommendations to meet objectives of this project.
5. Desktop analysis. Call-ups may include risk assessments, remedial options analyses/plans, or remediation specifications.
 6. Report preparation. A comprehensive report will be prepared documenting the input data, methods and results, and should be self-contained (i.e., contain all relevant supporting data and document all assumptions). The report should contain all required information as outlined in the DFO guidance and should clearly describe any aspects that deviated from the referenced protocols and guidance documents.
 7. Completion of federal government tools. Call-ups may include site classifications, DFO Class 3/N screening tool assessments, Appendix E Climate Change Adaptations, and DFO Site closure tool.
 8. Waterlot Assessment - The Contractor must undertake sediment assessments following the federal approach and following principles in the Framework for Addressing and Managing Aquatic Contaminated Sites Under the Federal Contaminated Sites Action Plan (FCSAP) (FCSAP – V2.1. 2021), the Federal Contaminated Sites Action Plan Guidance for Assessing and Managing Aquatic Contaminated Sites in Working Harbours, Version 5.1 (FCSAP, 2017), and other associated guidance as they become available or updated (see Section 2.2). A Sampling and Analysis Plan (SAP) must be developed in accordance with the CCME Guidance Manual for Environmental Site Characterization in Support of Environmental and Human Health Risk Assessment Volumes 1 – 4 (2016 or most recent) (https://ccme.ca/en/res/guidancemanual-environmentalsitecharacterization_vol_1e.pdf), and other applicable federal or provincial guidance or industry standards. Detailed recommendations for additional



data collection (sampling locations, analytical requirements, etc.) must be prepared by the Contractor in the Sediment Assessment for input to the proposed environmental site investigation program.

9. Remedial and/or Risk Management Options Evaluation - The Contractor must undertake a Remedial and/or Risk Management (R/RM) Options Evaluation to determine an appropriate remedial or risk management strategy that provides an appropriate level of protection to human health and/or to the environment. The remedial and/or risk management options evaluation must use the findings of available information, including supplemental assessments to determine the area requiring remediation or risk management and extent of the remediation or risk management required.
10. Liability Estimates - As Per Treasury Board of Canada Secretariat (TBS), an indicative cost estimate is a low-quality, order-of-magnitude estimate that would not be considered as a cost objective (i.e., replaces former class C & D estimate). The delineated extent of contamination is required to estimate the quantity of impacted media such that the liability estimate must consist of an indicative quality estimate. The Contractor must prepare an indicative estimate of liability (based on the preferred remedial option) associated with this contaminated site as per Treasury Board policy Remediation Liabilities Related to Contaminated Sites: A Supplement to the Financial Information Strategy (FIS) Manual (2010), or most up-to-date version as it becomes available. The Contractor must identify the degree of accuracy of the estimate (i.e., range). The liability estimate must include all necessary additional activities required prior to environmental site closure.
11. Remedial and Risk Management Planning - The Contractor must prepare a Remedial Action Plan (RAP) or Risk Management Plan (RMP) for the preferred option. A RAP is a document that describes in sufficient detail how the remediation of a site will occur. Every site with contamination is unique, however the RAP would be expected to outline the approach with sufficient detail and supporting information, follow industry best practices, and demonstrate management, prevention and/or mitigation of hazards and risks associated with the contamination. Risk Management is an approach that is considered when complete removal of contamination is not possible, not efficient, and/or not necessary. Every site with contamination is unique, however the RMP would be expected to demonstrate that the nature of the impacts will not change over time, risks are acceptably low and/or contaminant levels are expected to naturally attenuate over time, follow industry best practices and demonstrate management, prevention and/or mitigation of hazards and risks associated with the contamination.
12. Report Preparation - A comprehensive report must be prepared documenting the input data, methods and results, and should be self-contained (i.e., contain all relevant supporting data and document all assumptions). The report should contain all required information as outlined in the DFO guidance and should clearly describe any aspects that deviated from the referenced protocols and guidance documents.
13. Completion of federal government tools - Call-ups may include site classifications, DFO Class 3/N screening tool assessments, Appendix E Climate Change Adaptations, Contaminated Sites (CS) module, and DFO or FCSAP Site closure tool requirements.



2.2 Deliverables

For each call-up, and upon the completion of all tasks described within the call-up, the Contractor must submit a report which must undergo an internal senior technical peer review to ensure all data from the environmental site investigation are correct, the appropriate screening guidelines have been used, and calculations are correct, prior to sending to DFO for review.

The report must include a summary of the site conditions, and sufficient documentation for all assumptions and calculations to enable an independent technical review. The final report must address all comments provided during the Project Authority's review of the draft. The draft report must be submitted in editable digital format (MS-Word and Excel spreadsheets).

The Contractor must provide detailed recommendations for additional environmental work (if necessary).

Once complete, an electronic version of the final environmental report must be provided to DFO/Government of Canada must have full ownership and reliance on the report and information collected as part of the any work undertaken. A full digital copy of the report and its corresponding report files (i.e., MS Excel, MS Word, PDF documents, pictures in jpeg format, and any drawings in AutoCAD format), as well as any data files as received from the analytical laboratories in MS Excel format must be provided electronically.

Final reports produced under each call up will be deemed complete upon review and acceptance by the Project Authority.

2.3 Specifications and Standards

The Contractor must conduct the Environmental Services work in accordance with (but not limited to) the following protocols and guidance documents (or the most updated versions of these documents as they become available):

Federal documents

- [Framework for Addressing and Managing Aquatic Contaminated Sites Under the Federal Contaminated Sites Action Plan \(FCSAP\)](#) (FCSAP V2.1, 2021).
- [Federal Contaminated Sites Action Plan Guidance for Assessing and Managing Aquatic Contaminated Sites in Working Harbours](#) (FCSAP V1.1, 2021).
- [Federal Contaminated Sites Action Plan, Guidance for Site Closure Tool for Federal Contaminated Sites](#) (Environment Canada, 2012).
- Federal Contaminated Sites Action Plan, Guidance for Estimating Remediation Liabilities at Federal Contaminated Sites. (Environment Canada, 2015).
- Guidance Manual for Developing Site-Specific Soil Quality Remediation Objectives for Contaminated Sites. (CCME, 1996).
- Canadian Council of Ministers of the Environment (CCME) Environmental Site Characterization in Support of Environmental and Human Health Risk Assessment, 2016:
 - Volume 1: [Guidance Manual](#).
 - Volume 2: [Checklists](#).
 - Volume 3: [Suggested Operating Procedures](#).
 - Volume 4: [Analytical Methods](#).
- Canadian Environmental Protection Act (<https://lois-laws.justice.gc.ca/eng/acts/C-15.31/page-1.html>).



- Impact Assessment Act, S.C. 2019, c. 28, s. 1 (<https://laws.justice.gc.ca/eng/acts/i-2.75/page-1.html>).
- Canadian Environmental Quality Guidelines (<https://www.canada.ca/en/health-canada/services/chemical-substances/fact-sheets/federal-environmental-quality-guidelines.html>).
- Canadian Drinking Water Guidelines (Health Canada) (<https://www.canada.ca/en/health-canada/services/environmental-workplace-health/reports-publications/water-quality/guidelines-canadian-drinking-water-quality-summary-table.html>).
- Canada-wide Standard for Petroleum Hydrocarbons (PHC) in Soil (CCME) (https://ccme.ca/en/res/cws_phc_standard_1.0_e.pdf).
- Canada-wide Standard for Petroleum Hydrocarbons (PHC) in Soil: Technical Supplement (CCME) (https://support.esdat.net/Environmental%20Standards/Canada/CCME/cws_phc_tech_supp_1.4_e.pdf);
- A Federal Approach to Contaminated Sites (<https://www.canada.ca/content/dam/eccc/migration/fcs-scf/8DF3AC07-5A7D-483F-B263-6DE03104319A/fa-af-eng.pdf>).
- Federal Contaminated Sites Action Plan, Guidance for Assessing and Managing Aquatic Contaminated Sites in Working Harbours (https://publications.gc.ca/collections/collection_2022/eccc/En14-432-2021-eng-1.pdf).
- Federal Contaminated Sites Action Plan, Integrating Climate Change Adaptation Considerations (https://publications.gc.ca/collections/collection_2022/eccc/En14-487-2022-eng.pdf).
- Canada Occupational Health and Safety Regulations, Parts X and XIV (<https://laws.justice.gc.ca/PDF/SOR-86-304.pdf>).
- Hazardous Products Act (<https://laws-lois.justice.gc.ca/PDF/H-3.pdf>).
- Species at Risk Act, 2002, S.C. 2002, c. 29 (<https://laws.justice.gc.ca/PDF/S-15.3.pdf>).
- Migratory Birds Convention Act, 1994, S.C. 1994, c. 22 (<https://laws.justice.gc.ca/PDF/M-7.01.pdf>).
- Migratory Birds Regulations, 2022 (<https://laws-lois.justice.gc.ca/PDF/SOR-2022-105.pdf>).
- Migratory Bird Sanctuary Regulations, C.R.C., c. 1036 (https://laws.justice.gc.ca/PDF/C.R.C.,_c._1036.pdf).
- Federal Contaminated Site Risk Assessment in Canada: Toxicological Reference Values (TRVs), Version 3.0 (Health Canada) (https://publications.gc.ca/collections/collection_2021/sc-hc/H129-108-2021-eng.pdf).
- Federal Contaminated Site Risk Assessment In Canada: Part III: Guidance on Peer Review of Human Health Risk Assessments for Federal Contaminated Sites in Canada, Version 2.0 (Health Canada) (https://publications.gc.ca/collections/collection_2012/sc-hc/H128-1-11-633-eng.pdf).
- Federal Contaminated Site Risk Assessment in Canada: Part V: Guidance on Human Health Detailed Quantitative Risk Assessment for Chemicals (DQRA_{Chem}) (Health Canada) (<https://www.canada.ca/en/health-canada/services/environmental-workplace-health/reports-publications/contaminated-sites/federal-contaminated-site-risk-assessment-canada-part-guidance-human-health-detailed-quantitative-risk-assessment-chemicals-dqrachem-health-canada.html>).
- Federal Contaminated Site Risk Assessment in Canada: Supplemental Guidance: Checklist for Peer Review of Detailed Human Health Risk Assessments (HHRA) (Health Canada) (<https://www.canada.ca/en/health-canada/services/environmental-workplace-health/reports-publications/contaminated-sites/federal-contaminated-site-risk-assessment-canada->



[supplemental-guidance-checklist-peer-review-detailed-human-health-risk-assessments-hhra-health-canada.html](#)).

- Federal Contaminated Site Risk Assessment in Canada: Interim Guidance on Human Health Risk Assessment for Short-Term Exposure to Carcinogens at Contaminated Sites (Health Canada) (https://publications.gc.ca/collections/collection_2013/sc-hc/H144-11-2013-eng.pdf).
- Federal Contaminated Site Risk Assessment in Canada: Supplemental Guidance on Human Health Risk Assessment for Oral Bioavailability of Substances in Soil and Soil-like Media (Health Canada) (https://publications.gc.ca/collections/collection_2018/sc-hc/H144-46-2017-eng.pdf).
- Ecological Risk Assessment Guidance Document (CCME) (https://ccme.ca/en/res/eraguidance_e.pdf).
- FCSAP Ecological Risk Assessment Guidance, Module 2: Selection or Development of Site-specific Toxicity Reference Values (https://publications.gc.ca/collections/collection_2014/ec/En14-92-2-2013-eng.pdf).
- FCSAP Ecological Risk Assessment Guidance, Module 3: Standardization of Wildlife Receptor Characteristics (https://publications.gc.ca/collections/collection_2014/ec/En14-92-3-2013-eng.pdf).
- FCSAP Supplemental Guidance for Ecological Risk Assessment, Module 4: Causality Assessment Module – Determining the Causes of Impairment at Contaminated Sites: Are Observed Effects Due to Exposure to Site-related Chemicals or Due to Other Stressors? (https://www.canada.ca/content/dam/eccc/migration/fcs-scf/B15E990A-C0A8-4780-9124-07650F3A68EA/13-049-ERA_Module-204-ENG.pdf#:~:text=Determining%20the%20Causes%20of%20Impairment%20at%20Contaminated%20Sites:).
- FCSAP Ecological Risk Assessment Guidance, Module 5: Defining Background Conditions and Using Background Concentrations (https://publications.gc.ca/collections/collection_2021/eccc/En14-92-5-2020-eng.pdf).
- FCSAP Ecological Risk Assessment Guidance, Module 6: Ecological Risk Assessment for Amphibians on Federal Contaminated Sites (https://publications.gc.ca/collections/collection_2021/eccc/En14-92-6-2020-eng.pdf).
- FCSAP Ecological Risk Assessment Guidance, Module 7: Default Wildlife Toxicity Reference Values Recommended for Federal Contaminated Sites (<https://publications.gc.ca/site/eng/9.898691/publication.html>).

Regional documents (To be provided upon award of Standing Offer)

- Waterlot Screening Criteria Updated, DFO NL (WSP 2024) – (To be provided upon award of standing offer).
- Background Soils Technical Assistance Document V2 (PWGSC - 2011) – (To be provided upon award of standing offer).
- Atlantic RBCA Technical Documents – ([Technical Documents | Atlantic RBCA](#)).

Documents from other organizations

- Z768-01 (R2022): Phase I Environmental Site Assessment ([Z768-01 \(R2022\) | Product | CSA Group](#)).
- CAN/CSA-Z769-00 (R2023): Phase II Environmental Site Assessment ([Search Results - CSA Group](#)).

In cases of omissions or contradictions between these requirements, the most stringent requirements must apply. The Contractor must ensure that it has the most up-to-date versions of documentation.



3.0 Reporting Requirements

Due to the large portfolio of sites and the need to manage these sites over a long period of time, detailed terms of reference for environmental reports and sampling are required for all reports submitted unless otherwise specified by the Project Authority on a per site basis. These terms of reference may change at any time and will be provided at the time that a call-up is issued.

The Contractor must submit the draft report no more than four (4) weeks after receiving the analytical results from the laboratory.

4.0 Project Management Control Procedures

A minimum of monthly updates for project deliverables, schedule and financial progress must be submitted by the Project manager to the Project Authority.

5.0 Change Management Procedures

A request for a change in scope of the call-ups can be initiated by the Project Authority based on field conditions, sampling protocols or other situations such as custodian requirements. Both parties must agree on the scope change and have a record of both parties agreement. In the event the scope change requires a budget change, an amending call-up will be put in place by the Project Authority.

Changes in scope, financial limitation, period of time, named resources, terms and conditions to the Standing Offer agreement(s) must be authorized in writing by the Contracting Authority.

6.0 Other Terms and Conditions of the SOW

6.1 Communications/Meetings

A kick-off meeting will be held upon standing offer award and call-up award in a manner and venue (e.g., face-to-face, teleconference) to be determined by the project authority.

Progress meetings will be held upon submission of the problem formulation report and the draft report to discuss the direction of the project and the findings, as well as on an as needed basis throughout the course of the Work.

The contractor shall remain in regular contact with the project authority either by telephone or e-mail to ensure that the project is progressing according to schedule and that any required information is made available. When fieldwork is conducted, the Offeror must send to the Project Authority, a report describing the Contractors activities, via email, every day or the following day before 9 a.m. This report must include, but is not limited to, the following items:

- The tasks performed.
- The names of employees in the field.
- The time that the workday began and ended.
- Photographs of work completed and anything unusual that occurred during the workday.
- A copy of the requests for analyses sent to the analytical laboratories. The Department's project number must appear on each of the requests.
- A list of samples shipped to the analytical laboratories (analysis request form/ certificates).
- Any difficulties encountered (if applicable).
- Other activities carried out.

6.2 DFO Support

DFO Project Authority will:

- Allow and coordinate access to facilities and transportation via CCG Helicopter (the Canadian Coast Guard) for remote sites, as required.



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- Provide comments on draft reports within 10 working days. However, if draft reports are required to be submitted to FCSAP expert support departments for review, a 30-working day turn-around time should be included for scheduling purposes.
- Provide access to any publications, reports, studies or historical information related to the work, and
- Provide other assistance or support as appropriate.

6.3 Language of Work

The language of work will be English.



Annex Basis of Payment

(To be inserted at Standing Offer Award)



Annex Technical Criteria

1.0 GENERAL INSTRUCTIONS

The technical bid should address clearly and in sufficient depth the points that are subject to the evaluation criteria against which the bid will be evaluated. Simply repeating the statement contained in the bid solicitation is not sufficient. To facilitate the evaluation of the bid, Canada requests that Bidders address and present topics in the order of the evaluation criteria under the same headings. To avoid duplication, Bidders may refer to different sections of their bids by identifying the specific paragraph and page number where the subject topic has already been addressed.

1.1 MANDATORY REQUIREMENTS:

Proposals will be evaluated in accordance with the mandatory evaluation criteria as detailed herein. Bidders' Proposals must clearly demonstrate that they meet all Mandatory Requirements for the proposal to be considered for further evaluation. Proposals not meeting the mandatory criteria will be excluded from further consideration.

The proponent must include the following table in their proposal, indicating that their proposal meets the mandatory criteria, and providing the proposal page number or section that contains information to verify that the criteria have been met.

Canada requests that CVs and project descriptions be limited to a maximum of 2 pages each

No.	Mandatory Criteria	Meets Criteria (Yes/No) (Evaluation Team to complete)	Proposal Page No. (Offeror to complete)
M1	The Offeror must be an Environmental Firm licensed, certified, or otherwise authorized to provide the necessary environmental and professional services to the full extent that is required by Federal and provincial law applicable to the Contaminated Sites Consulting Services in the province of Newfoundland and Labrador To demonstrate this, the Offeror must provide with its Offer a copy of the valid Certificate of Approval or Authorization or a confirmation letter from the Association of Professional Engineers of Newfoundland and Labrador or the Association of Professional Geoscientists of Newfoundland and Labrador.		



No.	Mandatory Criteria	Meets Criteria (Yes/No) <i>(Evaluation Team to complete)</i>	Proposal Page No. <i>(Offeror to complete)</i>
M2	The Offeror must have experience conducting projects in the field of Contaminated Sites, within Canada, and for each of the 4 categories below: Environmental Site Assessment; Human health and ecological risk assessment (aquatic and terrestrial); Contaminated sediment assessment/waterlot risk assessment and; Remediation oversight of a contaminated site. To demonstrate this, the Offeror must provide one (1) project description for each of the categories above. The descriptions of each project should be a maximum of 2 pages, must be within the last 10 years and must be at least 6 months in duration. Each project description should include the following, at a minimum: Project Information: Project Category, Name, Location, Start Date (month/year) and Completion date (month/year) Client Information: name, address, title, contact info (phone No. and/or email address) of client contact at working level. Project Value: Total cost of the commissioned work/contract for the specified project category of the project. Project Scope and Description – Clearly describe the project scope and its similarity to the scope and tasks of required services related to the specified category M2 and Statement of Work. Based on the services required for each category, the description should include elements as they relate to the specified category such as work plan design, soil sampling, sediment sampling, development of conceptual site models, public/indigenous communications, health and safety,		



No.	Mandatory Criteria	Meets Criteria (Yes/No) (Evaluation Team to complete)	Proposal Page No. (Offeror to complete)
	etc. In the case that the project was carried out in a joint venture, the Offeror should identify only the responsibilities of their firm. Project Management: Demonstrate the applicable elements of project management utilized for project completion including: - Integration and work planning - Scope and work breakdown structure - Scheduling and time management - Budget tracking - Progress Reporting - Quality control/quality assurance - Change control - Human resource management - Communications - Project Risk - Environmental protection The projects provided in this criterion will be used to further evaluate the corporate experience in the point rated criteria R1.1 to R1.6.		
M3	The Offeror must propose one resource for each of the following Resource Categories: <u>Senior Manager/Project Contact:</u> Minimum of 10 years (120 months) of relevant experience managing projects in the contaminated sites field within the last fifteen (15) years from the RFSO closing date.. <u>Senior Technical Expert - Environmental Assessment Services:</u> Minimum of ninety-six (96) months (8 years) conducting, supervising and reviewing ESAs within the last twelve (12) years from the RFSO closing date, and must demonstrate that the proposed individual is registered as a Site Professional with the Newfoundland		



No.	Mandatory Criteria	Meets Criteria (Yes/No) <i>(Evaluation Team to complete)</i>	Proposal Page No. <i>(Offeror to complete)</i>
	and Labrador Dept of Environment and Climate Change by providing proof of active and validation of registration <u>Senior Technical Expert - Human Health Risk Assessor:</u> Minimum of ninety-six (96) months (8 years) conducting, supervising and reviewing risk assessments within the last twelve (12) years from the RFSO closing date. <u>Senior Technical Expert – Ecological Risk Assessor:</u> Minimum of ninety-six (96) months (8 years) conducting, supervising and reviewing risk assessments within the last twelve (12) years from the RFSO closing date. <u>Senior Environmental Professional (Sediment Scientist):</u> Minimum of eight (8) years' experience (96 months) within the last twelve (12) years from the RFSO closing date conducting sediment assessments that include sediment collection, analysis and evaluation of sediment chemistry (chemical fate, transport and speciation), sediment toxicity testing, benthic community assessment, food chain effects and environmental statistics. <u>Senior Environmental Engineer (Remediation):</u> Minimum of eight (8) years' experience (96 months) conducting, supervising, overseeing and reviewing, remediation projects including preparing and reviewing design specifications, within the last twelve (12) years from the RFSO closing date and must be a licensed member of the Professional Engineers in Newfoundland and Labrador (PEGNL), qualified as a Professional Engineer (P.Eng). Offeror must provide a copy of their valid professional license with their bid. <u>Senior Field Technician:</u> Minimum of ninety-six (96) months (8 years) experience completing environmental monitoring, sampling, data analysis, planning and supervision of field tasks related to contaminated sites		



No.	Mandatory Criteria	Meets Criteria (Yes/No) <i>(Evaluation Team to complete)</i>	Proposal Page No. <i>(Offeror to complete)</i>
	within the last twelve (12) years from the RFSO closing date. <u>Intermediate Project Professional Services:</u> Minimum of sixty (60) months (5 years) contaminated sites experience conducting environmental projects including field assessments, and report writing within the last eight (8) years from the RFSO closing date. <u>Intermediate Field Technician:</u> Minimum of thirty-six (36) months (3 years) experience completing environmental monitoring, sampling, and data analysis relevant to contaminated sites within the last five (5) years from the RFSO closing date. <u>Junior Project Professional</u> - Minimum of six (6) months contaminated sites experience conducting environmental projects including field assessments, and report writing within the last three (3) years from the RFSO closing date. <u>GIS Analyst:</u> Minimum of thirty-six (36) months (3 years) contaminated sites experience using a variety of software, preparing figures and drawings, and geospatial data analysis within the last 5 years from the RFSO closing date. Separate individuals must be proposed for each resources category (the same individual cannot be proposed for more than 1 resource category). The Offeror must include a copy of the CV for each of the proposed resources demonstrating relevant capability, capacity and expertise related to the category they are being proposed for. Each CV must clearly identify: The resource's education background, years of experience, their number of years with the company, and their location of employment; and		



No.	Mandatory Criteria	Meets Criteria (Yes/No) (Evaluation Team to complete)	Proposal Page No. (Offeror to complete)
	Their relevant experience (with dates) including the role played by the individual.		

1.2 POINT RATED TECHICAL CRITERIA REQUIREMENTS

Proposals meeting the Mandatory Criteria will be evaluated and rated against the following Point-Rated Criteria, using the evaluation factors specified for each criterion. Unless otherwise specified, the same project can be used to meet multiple criteria. It is imperative that these criteria be addressed in sufficient depth in the proposal to fully describe the Offeror's response and to permit the Evaluation Team to rate the proposals.

Offers **MUST** achieve a minimum score of 30/50 in the R1 Corporate experience criteria and 90/150 in the R2 Resource experience criteria and a minimum overall score of **120/200 (60%)** to be considered technically responsive. Proposals which fail to attain at least 30/50 points in the R1 Corporate experience criteria or 90/150 in the R2 Resource experience criteria will be considered technically non-responsive and no further evaluation will be conducted.

The Offeror must clearly demonstrate how the proposed resources meet the technical criteria and should submit the necessary documentation in their bid to support compliance with the technical requirements detailed below.

Merely stating the experience is not sufficient and the proposal will be scored accordingly.

Bidders should refer to related tasks and activities as identified in the Statement of Work to define how the proposed resources meet the evaluation criteria.

Example: if the evaluation criteria demands experience in gathering, analyzing and validating findings, it is not sufficient just to state the resource has experience gathering, analyzing and validating findings. The experience should be demonstrated and a reference made to where (specific location) in the resume the corroborating information can be located in the manner indicated above.

Bidders are advised that only listing experience without providing any supporting data to describe responsibilities, duties and relevance to the requirements will not be considered "demonstrated" for the purpose of this evaluation. The bidder should provide complete details as to where, when (month and year) and how (through which activities/responsibilities) the stated qualifications/experience were obtained.

Unless specified otherwise, the descriptions of each project submitted **must** include the following:



- Project Information: Project Category, Name, Location, Start Date and Completion date;
- Client Information: name, address, title, contact info (phone No. and/or email address) of client contact at working level;
- Project Value: Total cost of the commissioned work/contract for the specified category of the project; and
- Description of the type and scope of services that meet the identified criteria, project objectives, success achieved in providing project deliverables within the stated quality, budget, and schedule requirements.

Where rated criteria assesses length of experience, overlapping periods will be counted only once.

Where a rated criteria requests a project example/description, the project must have been for a duration of at least 6 months.

The breakdown of points for each point rated criterion is as follows:

Criterion		Maximum Points Available	Minimum Pass Score	
Corporate Experience		50	30	
Resource Experience		150	90	
Criteria No.	Point Rated Technical Criterion	Scoring Grid	Maximum Points	Cross-Reference to Proposal (<i>Offeror to complete</i>)
Corporate Experience Criteria				
R1.1	Client for each project submitted in Criteria M2: All four (4) projects listed in M2 will be evaluated for this criteria.	Each submitted project in M2 will be awarded a maximum of 5 points for this criteria: Client is a Canadian Federal Government Organization (Federal Department, Crown Corporations, Agencies, etc.) = 5 points Client is a Canadian Provincial/Territorial Government Department or Provincial/Territorial Crown Corporation = 4 points	/20	



		Non-governmental client located in Canada = 3 points		
R1.2	Value* of project submitted in M2 for the Environmental Site Assessment category (in CAD).	The submitted Environmental Site Assessment project will be awarded a maximum of 5 points for this criteria: Equal to or greater than \$100,000 CAD = 5 points Equal to or greater than \$40,000 but less than \$100,000 = 3 points Less than \$40,000 = 2 points	/5	
R1.3	Value* of project submitted in M2 for the Human Health and Ecological Risk Assessment (in CAD).	The submitted Human Health and Ecological Risk Assessment project will be awarded a maximum of 5 points for this criteria: Equal to or greater than \$125,000 CAD = 5 points Equal to or greater than \$40,000 but less than \$125,000 = 3 points Less than \$40,000 = 2 points	/5	
R1.4	Value* of project submitted in M2 for the Contaminated Sediment Assessment (in CAD).	The submitted Contaminated Sediment Assessment project will be awarded a maximum of 5 points for this criteria:	/5	



		Equal to or greater than \$125,000 CAD = 5 points Equal to or greater than \$40,000 but less than \$125,000 = 3 points Less than \$40,000 = 2 points		
R1.5	Value* of project submitted in M2 for the Remediation of a contaminated site (in CAD).	The submitted Remediation of a contaminated site project will be awarded a maximum of 5 points for this criteria: Equal to or greater than \$350,000 CAD = 5 points Equal to or greater than \$75,000 but less than \$350,000 = 3 points Less than \$75,000 = 2 points	/5	
R1.6	The Offeror should demonstrate, using the projects submitted in M2, experience testing multi-media from among the following media types: soil sediments groundwater air surface water	Three of the 4 projects involve 3 or more media types = 10 points Three of the 4 projects involve two media types = maximum 5 points Three of the 4 projects involve one media = maximum 1 point Partial points will not be awarded. Example: if two projects include 2 media types and 2 projects includes 3	/10	



		media types, the awarded points will be 5 points.		
Total Corporate Points (Minimum Corporate experience points required = 30/50 Points)			/50	

* Only the portion of the project value that is related to the respective category will be considered. For example, if the Offer submits a project that was completed for a Site Assessment and a Sediment Assessment, and the project is submitted for the Site Assessment category, only the cost for the Site Assessment portion of the work will be considered as the Project Value.

For the following rated criteria related to the proposed resources, the Offeror must include a copy of the CV for each of the proposed resources demonstrating relevant capability, capacity and expertise related to the category they are being proposed for. Each CV must clearly identify:

- a. The resource's education background, years of experience, their number of years with the company, and their location of employment; and
- b. Their relevant experience (with dates) including the role played by the individual

Criteria No.	Point-Rated Technical Criterion	Scoring Grid	Maximum Points	Cross- reference to Proposal (<i>Offeror to complete</i>)
Resource Experience Criteria				
Senior Manager/Project Contact Experience				
R2.1	The Offeror should demonstrate that the proposed resource has more than the minimum of ninety-six (96) months (8 years) relevant experience managing contaminated site projects in the past 12 years from the RFSO closing date.	Each additional 12 months = 1 point up to a maximum of 5	/5	
R2.2	The Offeror should demonstrate that the proposed resource has formal business or project management	Relevant Diploma or Undergraduate Degree = 3 points Relevant Graduate degree = 4 points	/5	



	education by providing a copy of the certification (i.e. Certification of Project Management Professional through the Project Management Institute (PMI) or educational diploma/degree.	PMP certification = 5 points		
R2.3	The Offeror should demonstrate that the proposed resource has project management experience by providing one (1) project in the resources' CV where at least six (6) of the following tasks were undertaken: work planning, scoping, scheduling and time management, budget tracking, quality control, change control, communications, supervision of multidisciplinary team, i.e., risk assessment, site assessment, sediment assessment. Project complexity elements: involves three or more agencies/stakeholder groups/jurisdictions; OR	Less than 6 tasks = 0 points Any 6 tasks from the list = 6 points 1 point will be awarded for each project complexity element up to a maximum of 4 points. Points will be awarded only once per task or complexity element demonstrated.	/10	



	contamination across three or more media; OR overall project value totaling over \$1M or more; OR a remote project (remote meaning a project located greater than 300 kms from main centers of population or that require additional logistical considerations i.e. sites accessible only by ice roads/by air, only accessible at certain times of year etc.).			
Senior Technical Expert – Environmental Site Assessments				
R3.1	The Offeror should demonstrate that the proposed resource has more than the minimum ninety-six (96) months (8 years) relevant experience managing contaminated site projects within the last twelve (12) years from the RFSO closing date.	Each additional 12 months = 1 point up to a maximum of 4	/4	



R3.2	The Offeror's proposed resource should have a professional designation, a Bachelor's degree or graduate degree in the relevant field. A copy of the certification or educational diploma/degree can be provided with the Offerors' submission.	Relevant BSc or equivalent = 2 points Relevant MSc or equivalent graduate-level degree = 3 points Professional Engineer (P.Eng.) or a Professional Geoscientist (P.Geo.)= 5points	/5	
R3.3	The Offeror's proposed resource should have experience conducting environmental site assessments in relevant federal (Canada) or provincial (Newfoundland and Labrador) frameworks and can demonstrate this experience by providing a copy of the resource's CV showing the relevant project framework experience.	1 Project with Federal Framework = 1 point 1 Project with Province of Newfoundland and Labrador Framework = 1 point	/2	



R3.4	The Offeror's proposed resource should have experience conducting various aspects of environmental site assessments (ESAs) including Phase I, II and III ESAs including, but not limited to, all of the following: • planning and scoping ESAs • evaluating multiple lines of evidence • senior review and advice • technical report preparation • Data analysis and interpretation from various media (including but not limited to soil, groundwater, sediment, vegetation) • communication including providing updates to client, providing recommendations, discussing findings. Offeror should demonstrate this experience by providing the resource's CV and providing 1 project example	Non-complex project with multiple media exposures = 6 points Complex project using available screening criteria = 10 points Complex: Means projects involving three or more agencies/stakeholder groups/jurisdictions OR contamination across three or more media OR overall project value totaling over \$1M.	/10	
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	demonstrating all aspects of ESAs described above in the CV, within the last 15 years.			
Senior Technical Expert – Human Health Risk Assessor				
R4.1	The Offeror should demonstrate the proposed resource has a professional or graduate degree in a relevant field. A copy of the certification or educational diploma/degree can be provided with the Offerors' submission.	Relevant MSc or equivalent graduate-level degree = 3 points Professional Designations in relevant fields or PhD = 5	/5	
R4.2	The Offeror should demonstrate that the proposed resource has more than the minimum ninety-six (96) months (8 years) relevant experience managing contaminated site risk assessment projects, within the last twelve (12) years from the RFSP closing date.	Each additional 12 months = 1 point up to a maximum of 4	/4	
R4.3	The Offeror's proposed resource should have experience conducting human health risk	1 Project with Federal Framework = 1 point 1 Project with Province of Newfoundland and Labrador Framework = 1 point	/2	



	assessments in relevant federal (Canada) and provincial (NL) frameworks and can demonstrate this experience by providing a copy of the resource's CV showing the relevant project framework experience within the last 12 years.			
R4.4	The Offeror's proposed resource should have experience conducting various aspects of human health risk assessments including, but not limited to, all of the following: • planning and developing site specific/detailed quantitative risk assessment • evaluating toxicological data for human receptors • evaluating multiple lines of evidence • selecting and/or establishing TRVs for Human Health • current soil vapor modeling and guidance	Non-complex project with multiple media exposures = 6 points Complex project using available screening criteria = 8 points Complex* project with multiple COCs and pathways with TRV derivation, amortization, and risk management planning = 10 points *Complex: Means projects involving three or more agencies/stakeholder groups/jurisdictions OR contamination across more than three media OR overall project value totaling over \$1M.	/10	



	• cancer amortization and current regulatory guidance • senior review and advice • technical report preparation, and • risk characterization and recommendations Offeror should demonstrate this experience by providing the resource's CV and providing one (1) project example demonstrating all the aspects of human health risk assessments described above in the CV, within the last twelve (12) years from the RFSO closing date.			
Senior Technical Expert – Ecological Risk Assessor				
R5.1	The Offeror should demonstrate that the proposed resource has more than the minimum ninety-six (96) months (8 years) relevant experience managing contaminated sediment projects within the last 12	Each additional 12 months = 1 point up to a maximum of 4	/4	



	years from the RFSO closing date.			
R5.2	The Offeror's proposed resource should have a professional designation or graduate degree in the relevant field. A copy of the certification or educational diploma/degree can be provided with the Offerors' submission.	Relevant MSc or equivalent graduate-level degree = 3 points P. Biol. or PhD = 5 points	/5	
R5.3	The Offeror's proposed resource should have experience conducting various aspects of ecological risk assessments including, but not limited to, all the following: • planning and developing a site-specific ecological risk assessment • evaluating toxicological data for ecological receptors • evaluating multiple lines of evidence • selecting and/or	Non-complex project with multiple media exposures = 6 points Complex project using available screening criteria = 8 points Complex* project with multiple COCs and pathways with TRV derivation, species at risk considerations = 10 points *Complex: Means projects involving three or more agencies/stakeholder groups/jurisdictions OR contamination across more than three media OR overall project value totaling over \$1M.	/10	



	establishing TRVs for Ecological Health • senior technical advice • senior review • senior technical report preparation • risk characterization • making recommendations Offeror should demonstrate this experience by providing one (1) project example in the resource's CV demonstrating all the aspects of the environmental/ecological health risk assessments as described above in the CV, within the last twelve (12) years of the RFSO closing date.			
Senior Technical Professional – Sediment Scientist				
R6.1	The Offeror should demonstrate that the proposed resource has more than the minimum ninety-six (96) months (8 years) relevant experience managing contaminated sediment projects	Each additional 12 months = 1 point up to a maximum of 4	/4	



	within the last 12 years from the RFSO closing date.			
R6.2	The Offeror should demonstrate the proposed resource has a professional designation, a Bachelor's degree or graduate degree in the relevant field. A copy of the certification or educational diploma/degree must be provided with the Offerors' submission.	Relevant PhD or MSc or equivalent graduate-level degree = 2 points Relevant BSc = 1 point	/2	



R6.3	The Offeror should demonstrate the proposed resource has strong expertise in sediment chemistry (chemical fate, transport and speciation), sediment toxicity testing, benthic community assessment, food chain effects and environmental statistics. Offeror should demonstrate this experience by providing one (1) project example demonstrating the various aspects of the sediment chemistry evaluated during a sediment assessment as described above in the CV, within the last twelve (12) years of the RFSO closing date.	Non-complex project = 2 points Complex project using the Framework for Addressing and Managing Aquatic Contaminated sites under the Federal Contaminated Sites Action Plan (completing up and including Step 5) = 6 points Complex* project with multiple COCs and lines of evidence undertaken (i.e. sediment chemistry, sediment toxicity testing, benthic community assessment, pore-water analysis) = 10 points *Complex: Means projects involving three or more agencies/stakeholder groups/jurisdictions OR contamination across more than three media OR overall project value totaling over \$1M.	/10	
Senior Environmental Engineer – Remediation				
R7.1	The Offeror should demonstrate that the proposed resource has more than the minimum ninety-six (96) months (8 years) within the last 12	Each additional 12 months = 1 point up to a maximum of 4	/4	



	years of relevant experience managing contaminated site remediation projects.			
R7.2	The Offeror' proposed resource should have a professional designation, Bachelor's degree or graduate degree in the relevant field Offeror.	Relevant BSc or equivalent = 2 points Relevant MSc or equivalent graduate-level degree = 3 points	/3	
R7.3	The Offeror's proposed resource should have experience undertaking various aspects of contaminated remediation design including, but not limited to, all of the following: • Planning and designing remediation work designs • Regulatory Compliance oversight • Senior technical review and advice • Technical report preparation • Developing standing operating procedures	Non-complex remediation project = 6 points Complex remediation project using available screening criteria = 8 points Complex* remediation project with multiple COCs and/or impacted media bring remediated in remote area = 10 points *Complex: Means projects involving three or more agencies/stakeholder groups/jurisdictions OR contamination across more than three media OR overall project value totaling over \$1M.	/10	



	• Preparation of detailed design drawings and specifications for remediation contracts • Directing complex site remediation works including management of site supervision of contractors during remediation work Making recommendations Offeror should demonstrate this experience by providing one (1) project example in the resources CV demonstrating the various aspects of the contaminated site remediation as described above in the CV, within the last twelve (12) years from the RFSO closing date.			
Senior Field Technician				
R8.1	The Offeror should demonstrate that the proposed resource has more than the minimum ninety-six (96) months (8 years) relevant experience in conducting field work for	Each additional 12 months = 1 point up to a maximum of 4	/4	



	contaminated site projects, within the last twelve (12) years from the RFSO closing date.			
R8.2	The Offeror's proposed resource should have contaminated sites field experience collecting samples from various media: • soil • groundwater • porewater • soil vapour • sediment for chemistry • sediment for toxicity testing • benthic community samples • biological tissue • vegetation • indoor air • surface water • designated substances including but not limited to asbestos containing materials and lead based paint. Experience should be demonstrated using the resource's CV.	Less than 6 of the items listed = 0 points Any 6 of the items listed = 6 points 1 point for each additional item listed to a maximum 10 points total Points will be awarded only once per item demonstrated.	/10	
Intermediate Project Professional				



R9.1	The Offeror should demonstrate that the proposed resource has more than the minimum sixty (60) months (5 years) relevant contaminated sites experience within the last nine (9) years from the RFSO closing date.	Each additional 12 months = 1 point up to a maximum of 3	/3	
R9.2	The proposed resource should have demonstrated experience conducting contaminated site projects, integrating climate change into ESAs, completing National Classification System for Contaminated Sites (NCSCS), and completing Aquatic Sites Classification System (ASCS) Scores, within the last 5 years. The Offeror should demonstrate experience by providing project examples relevant to each criterion.	Conducting contaminated site project (ESA, Risk Assessment, Sediment Assessment or Remediation) = 1 point Incorporating climate change into ESAs = 1 point Completing an ASCS or NCSCS score = 1 point Points will be awarded only once for each item.	/3	
Intermediate Field Technician				
R10.1	The Offeror's proposed resource should have contaminated sites field experience collecting samples	Less than 6 of the items listed = 0 points Any 6 of the items listed = 6 points	/10	



	from various media: • soil • groundwater • porewater • soil vapour • sediment for chemistry • sediment for toxicity testing • benthic community samples • tissue • indoor air • surface water The Offeror can demonstrate experience by providing project examples relevant to each criteria.	1 point for each additional item listed to a maximum 10 points total Points will be awarded only once per item demonstrated.		
R10.2	The Offeror should demonstrate that the proposed resource has more than the minimum thirty-six (36) months (3 years) relevant contaminated sites experience within the last five (5) years from the RFSO closing date.	Each additional 12 months = 1 point up to a maximum of 3	/3	



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Junior Project Professional				
R11.1	The Offeror should demonstrate that the proposed resource has more than the minimum six (6) months relevant contaminated sites experience within the last three (3) years from the RFSP closing date.	Each additional 6 months = 1 point up to a maximum of 3	/3	
GIS Analyst				
R12.1	The Offeror should demonstrate that the proposed resource has more than the minimum thirty-six (36) months (3 years) relevant experience within the last five (5) years from the RFSP closing.	Each additional 12 months = 1 point up to a maximum of 3	/3	
Total Resource Points (minimum resource experience points required 90/150)			/153	
Overall Points (Corporate and Resources)			/203	
Minimum Overall Pass Mark			122/203	



Annex Usage Reporting Form

The Offeror's report must include at minimum:

The Offeror's name as on the Standing Offer

The Standing Offer number

The dates of the Standing Offer reporting Period

Date of the call-up	Call-up Order Number	Services provided	Work completion date	Total Value of Call-up	Method of Payment (Direct Deposit/Credit Card)